

# LARGE-SCALE ANIMAL IMPOUND HANDBOOK

# INTRODUCTION

## AND PURPOSE

The Large-Scale Animal Activity/Impound Handbook was developed to guide agencies and organizations through the challenges of responding to large-scale animal events, such as impounds, cruelty seizures, hoarding cases, or disasters. These situations demand rapid coordination, cross-agency collaboration, and thoughtful execution under pressure. This handbook offers a clear, practical framework that promotes effective, humane, and scalable responses, grounded in shared principles, legal awareness, and operational readiness.

This resource is designed to support these goals:

### STANDARDIZING RESPONSES

#### ACROSS AGENCIES AND JURISDICTIONS

One of the most pressing challenges in large-scale cases is the lack of consistent practices across agencies, municipalities, and even departments. This handbook provides common language, protocols, checklists, and documentation templates that help align procedures, from the initial scene response to long-term animal care and case resolution. These tools help eliminate confusion, reduce duplication, and ensure that all stakeholders are operating with shared expectations and best practices regardless of geographic or organizational boundaries.

### BRIDGING GAPS

#### IN CASE INITIATION AND SUCCESSFUL CONCLUSION

Successful outcomes hinge on seamless collaboration between enforcement, legal teams, sheltering partners, and communication professionals. This handbook includes guidance on evidence documentation, chain of custody, coordination with prosecutors, and public messaging. It also offers clear role definitions and sample MOAs to foster early alignment and transparency among partners. By addressing common breakdowns—such as unclear lines of authority, confusion over the progress of the criminal case, and a lack of clarity about who is responsible for communications and what information can legally and ethically be shared—this handbook helps ensure that agencies are coordinated, legally sound, and aligned in their public response.

### ENSURING SUSTAINABILITY

#### OF FINANCIAL AND OPERATIONAL MODELS

Large-scale responses can quickly overwhelm budgets, staffing, and infrastructure. This handbook offers tools to support more sustainable planning, including cost projection templates, volunteer management structures, and guidance on scaling operations responsibly. It encourages the use of mutual aid agreements, shared resources, and recovery planning to avoid burnout and financial strain so that organizations can maintain quality care during a crisis and rebound effectively afterward.

# AUDIENCE & HOW TO USE THIS HANDBOOK

This handbook is intended for use by anyone involved in large-scale animal cases, including animal shelters, rescues, law enforcement, animal control, veterinarians, prosecutors, judges, emergency management agencies, and policymakers. It can be used proactively for training and preparedness, or in real-time as a decision-making and coordination tool.

Each section includes practical guidance, customizable templates, and example documents that can be adapted to each local context. While no two events are the same, this handbook supports a consistent, informed and evidence-based approach to protecting animals and serving communities during resource intensive responses.

## LEGAL DISCLAIMER

The information provided in this handbook is intended solely for general educational and informational purposes only. It does not constitute, nor should it be construed as, legal advice, counsel, or a formal legal opinion on any specific facts or circumstances.

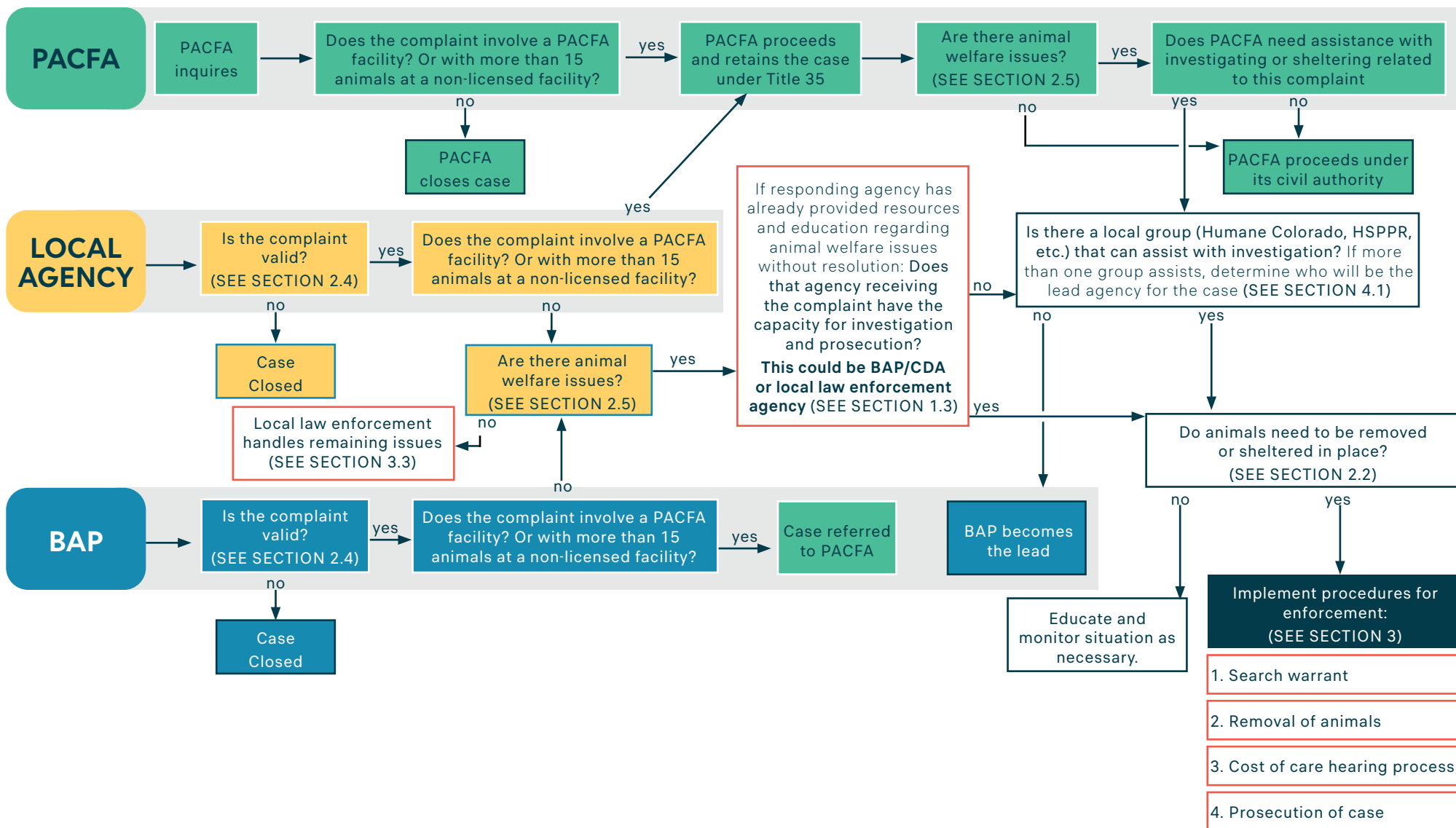
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# Animal Case Initiation Decision-Making Framework

## Start Here

Complaint about companion animals received by  
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# SECTION 1

## PREPAREDNESS — BEFORE A CASE BEGINS

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## Building a Regional Partner Network

Animal welfare agencies across Colorado have developed regional communications networks that may be leveraged to coordinate support during large-scale impound cases.

These networks include:

- Metro Denver Animal Welfare Alliance (MDAWA) | <https://www.mdawalliance.org>
- Animal Welfare Association of Colorado (AWAC) | <https://awac.net>
- Colorado Front Range Operations group (COFrOps)
- Western Colorado Animal Resources (WeCARE) in Western Colorado
- Northern Colorado Regional Animal Welfare Coalition (NOCORAWC) in Northern Colorado

Each of these groups maintains mailing lists and other communication channels, such as regular meetings, which can be used to share information, mobilize resources, and offer support. Engaging these networks may be beneficial for ensuring that local organizations are aware of emerging cases and can respond effectively.

## Building Long-Term Capacity

While this handbook focuses on managing individual cases, systemic resource constraints require long-term solutions:

### AGENCY-LEVEL STRATEGIES TO CONSIDER

Develop partner networks before they are needed:

- Establish MOUs with neighboring agencies
- Build relationships with rescue organizations
- Identify volunteer networks
- Create foster networks
- Establish veterinary partnerships

### BUILD FINANCIAL RESERVES

- Emergency fund for large cases
- Line of credit for immediate expenses
- Identified grant sources
- Pre-approved fundraising protocols

### CROSS-TRAIN AND EXPAND STAFF CAPACITY

- Train volunteers for specific roles
- Develop on-call volunteer lists
- Partner with vet tech/animal science programs for students
- Succession planning for key staff

### INCREASE PHYSICAL CAPACITY

- Identify overflow space before it's needed
- Establish agreements with boarding facilities
- Develop foster networks
- Plan for temporary sheltering solution

### SYSTEM-LEVEL ADVOCACY OPPORTUNITIES

Agencies working together can advocate for:

- Increased state/county funding for animal welfare
- Regional coordination and resource-sharing
- Legislative changes to strengthen enforcement
- Public awareness of the resource challenge
- Individual agencies cannot solve systemic underfunding, but collective advocacy can improve the situation over time.



### ANIMAL IMPOUND COORDINATION TEMPLATES

#### APPENDIX 14

[MOU Cost of Care Template Between Law Enforcement and Sheltering Agency](#)

#### APPENDIX 18

[Shelter and Transport Help Request Form](#)

#### APPENDIX 19

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#### APPENDIX 20

[MOA for Multi-Agency Coordination](#)



# Incident Command System: Resources For Getting Started

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When a large-scale animal impound is underway, the operational demands — coordinating multiple agencies, managing dozens or hundreds of animals, maintaining documentation, and communicating with the public and media — can quickly exceed the capacity of any single agency to manage informally.

Without a clear command structure established from the outset, roles become ambiguous, resources are misallocated, and critical tasks fall through the gaps.

The Incident Command System (ICS) is the recommended framework for managing large-scale animal impound operations, outlines the conditions that should trigger its activation, and provides templates for developing effective Incident Action Plans.

## Incident Command System Resources



**APPENDIX 2.B**  
Incident Command System Training



**APPENDIX 2**  
Incident Command System Training



**APPENDIX 3**  
Completing an Incident Action Plan



**APPENDIX 4**  
How to Complete the ICS 201 Form

# Assessing Agency Capacity and Resources

Agencies responding to large-scale animal cases frequently face a core operational reality: the resources required to impound and care for large numbers of animals — space, staff, and funding — often exceed what is immediately available. Yet when animals are suffering or in imminent danger, neither moral obligation nor legal authority permits inaction.

This creates a difficult set of competing pressures. An agency may find itself weighing the risks of assuming more than it can realistically manage against the consequences of leaving animals in dangerous conditions — or delaying action while working to build capacity, during which time suffering may continue.

There is no simple resolution to this tension. This handbook does not offer one. What it does provide are tools to help agencies make informed decisions given the resources available, coordinate with partners to expand operational capacity, prioritize intervention where it is most critical, and document the reasoning behind decisions made under resource constraints.

## HOW STAFFING AFFECTS THE ABILITY TO RESPOND

| Staffing                                         | What These Agencies Can Typically Handle                                                                                                                                                                                                                | Constraints                                                                                                                                                                                                                                                                                                                                               |
|--------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| WELL-STAFFED AGENCIES (MULTIPLE FULL-TIME STAFF) | <ul style="list-style-type: none"><li>• Routine large-scale impounds (20-50 animals)</li><li>• Extended case management (6+ months)</li><li>• Complex coordination with multiple partners</li><li>• Staffing 24/7 care and emergency response</li></ul> | <ul style="list-style-type: none"><li>• Even “well-staffed” agencies can be overwhelmed by very large cases (100+ animals)</li><li>• Staff burnout from extended high-intensity cases</li><li>• Regular operations cannot be abandoned to focus solely on one case</li><li>• Budget limitations may prevent hiring additional staff when needed</li></ul> |
| MINIMALLY STAFFED AGENCIES (1-3 FULL-TIME STAFF) | <ul style="list-style-type: none"><li>• Small-scale impounds (under 10 animals)</li><li>• Cases with strong volunteer support</li><li>• Short-term holding (under 30 days)</li><li>• Coordination role if partners provide actual care</li></ul>        | <ul style="list-style-type: none"><li>• Staff pulled from other duties to manage impound</li><li>• Limited after-hours coverage</li><li>• Difficult to sustain effort over months-long cases</li><li>• Handling sudden increases in workload may require sacrificing other services</li><li>• May need to refuse cases beyond capacity</li></ul>          |
| VOLUNTEER/ PART-TIME AGENCIES                    | <ul style="list-style-type: none"><li>• Very small cases (under 5 animals)</li><li>• Coordination and referral to other agencies</li><li>• Foster-based care if network is strong</li><li>• Support role in multi-agency response</li></ul>             | <ul style="list-style-type: none"><li>• Volunteer availability fluctuates</li><li>• No guaranteed after-hours coverage</li><li>• Limited ability to respond to emergencies</li><li>• May need to refer most cases to better-resourced agencies</li><li>• Sustainability concerns for any extended case</li></ul>                                          |

### The Staffing Reality: Staff capacity cannot be created overnight.

When a case exceeds staffing capacity, agencies may consider:

- Securing partner agencies to share workload
- Delaying removal until adequate staffing can be coordinated
- Referring to an agency with greater capacity
- In true emergencies, accepting that staff will be overwhelmed short-term while building support

## HOW FINANCIAL RESOURCES AFFECTS THE ABILITY TO RESPOND

### The Cost Reality

A large-scale impound can cost:

- \$50,000 - \$200,000+ for 50-100 animals held for 6 months
- \$15-30+ per animal per day for basic care (cats/dogs)
- \$25-50+ per animal per day for large animals
- Plus: Initial veterinary exams, emergency medical care, transport, equipment

| Resources             | What These Agencies Can Typically Handle                                                                                                                                                                                                                                   | Constraints                                                                                                                                                                                                                                                                                         |
|-----------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| WELL-FUNDED AGENCIES  | <ul style="list-style-type: none"><li>• Can absorb initial costs while awaiting Cost of Care recovery</li><li>• Can hire temporary staff if needed</li><li>• Can purchase equipment/supplies quickly</li><li>• Can sustain longer cases without financial crisis</li></ul> | <ul style="list-style-type: none"><li>• Even well-funded agencies have budgets and boards</li><li>• Large cases can still strain resources</li><li>• Fundraising may be needed for very large or extended cases</li><li>• Board approval often required for major expenditures</li></ul>            |
| TIGHT-BUDGET AGENCIES | <ul style="list-style-type: none"><li>• Small cases where costs can be absorbed</li><li>• Cases where Cost of Care recovery is rapid and likely</li><li>• Cases with strong community fundraising support</li><li>• Partner cost-sharing arrangements</li></ul>            | <ul style="list-style-type: none"><li>• Cannot take on large cases without external funding</li><li>• Risk organizational financial crisis if case costs balloon</li><li>• May need to refuse cases despite moral obligation</li><li>• Limited ability to purchase equipment or hire help</li></ul> |

### The Financial Reality

Cost of Care proceedings help but:

- Take 30+ days for first hearing
- Owner may not have ability to pay
- Recovery is never guaranteed
- Agencies carry all costs in the meantime

Fundraising helps but:

- Takes time to organize
- May not reach goal
- Donor fatigue if multiple appeals
- Restricted funds may not cover all costs

Partner cost-sharing helps but:

- Requires advance agreement
- Should be formalized (see Mutual Aid Request Form)
- Not all partners can contribute financially

# When Resources are Inadequate: Options to Consider

## OPTION 1

### BUILD CAPACITY BEFORE ACTING

#### When This May Work:

- Animals are not in immediate danger
- Time exists to coordinate partners and resources
- Owner might cooperate with compliance plan
- Delay of days/weeks is acceptable

#### How to Do It:

- Agencies may consider using the [Resource Assessment Tool](#) to identify gaps
- Contact partners using [Shelter Transport Help Request Form](#)
- Secure commitments for space, staff, funding
- Develop plan before executing seizure
- Risk: Delay allows continued suffering or worsening conditions

## OPTION 2

### PROCEED WITH IMPERFECT RESOURCES

#### When This May Work:

- Animals are in immediate danger
- No better-resourced agency available
- Short-term management is possible even if overwhelming
- Partners can fill gaps quickly (within days)

#### How to Do It:

- Remove animals to prevent immediate harm
- Simultaneously activate emergency partner coordination
- Accept temporary imperfect solutions (animals spread across multiple facilities, foster networks mobilized quickly)
- Work intensely to build sustainable plan within 48-72 hours
- Risk: Staff burnout, financial strain, imperfect care conditions during crisis phase

## OPTION 3

### PARTIAL INTERVENTION

#### When This May Work:

- Owner shows some willingness to cooperate
- Full removal would exceed capacity
- Most critical animals can be removed
- Owner-retained seizure or compliance order is feasible

#### How to Do It:

- Remove animals in most immediate danger
- Leave animals that are stable with compliance requirements

- Monitor frequently
- Owner voluntarily reduces numbers or improves conditions
- Risk: Some animals remain in substandard conditions; requires ongoing monitoring

## OPTION 4

### REFER TO AGENCY WITH GREATER CAPACITY

#### When This May Work:

- Another agency has significantly more resources
- Case is in shared jurisdiction or borders
- Other agency willing to take lead
- Involvement would stretch resources dangerously thin

#### How to Do It:

- Contact agency with greater capacity
- Offer support role if possible
- Provide documentation and case information
- Coordinate transition of responsibility
- Risk: Other agency may also lack capacity; animals remain in situation while coordination happens; loss of local control

## OPTION 5

### DOCUMENT DECISION NOT TO ACT

#### When This May Be Necessary:

- No agency has capacity to respond safely
- Conditions are poor but not immediately life-threatening
- Resources literally do not exist (no space anywhere, no staff, no funding)
- Acting would jeopardize agency operations and other animals in care

#### How to Do It:

- Document thoroughly why action cannot be taken
- Document conditions observed
- Consult with supervisor, legal counsel, prosecutor
- Document what resources would be needed to act
- Note this is resource-driven, not a determination that probable cause doesn't exist
- Monitor and re-assess when resources become available
- Risk: Legal and moral exposure; public criticism; animals continue to suffer
- This is the hardest option and should be considered only when genuinely no other option exists.

# Realities and Legal Challenges of Resource Constraints

## THE REALITY

### Agencies did not create the resource shortage:

- Inadequate funding for animal welfare is a systemic problem
- Individual agencies cannot personally solve every case of animal suffering
- Running an agency into the ground does not help animals long-term
- Saying “we cannot safely do this” is sometimes the responsible answer

### Challenges - Animals are suffering now:

- They cannot wait for systemic change
- Resource limitations don’t reduce their suffering
- Someone must act when animals are in danger
- Agencies may be the only option, inadequate as resources are
- This tension is real and painful. There is no “right” answer that makes it go away

## LEGAL OBLIGATIONS

### Colorado statute requires:

- Animals in cruel or neglectful conditions must be removed when discovered
- Officers have legal authority and obligation to act on probable cause
- Cost of Care proceedings exist to help recover costs

### But statute does not require:

- Taking on cases that will bankrupt organizations
- Accepting animals when there is no space to shelter them
- Proceeding when doing so would be reckless

Legal obligations must be balanced with operational reality.

### Challenges - What this means:

- Agencies should act on immediate emergencies (life-threatening situations)
- Agencies have discretion on timing and approach for non-emergency cases
- Documenting resource constraints is legally and professionally important
- Consulting with prosecutor about resource limitations is appropriate



## Key Takeaways

- Resource constraints are real: agencies should not feel guilty for limitations beyond their control
- But obligations to our communities are also real: animals suffer regardless of resource constraints
- This tension requires difficult choices: there are no perfect answers
- Location, staffing, and funding dramatically affect capacity: honesty about limits is important
- Partner coordination is essential: large-scale cases typically cannot be handled alone
- Document resource-based decisions: protects agencies legally and professionally
- Immediate danger requires action: even imperfect action
- Non-emergency cases allow time: agencies can use this time to build capacity before acting
- Communicate honestly: with public, partners, and leadership about constraints
- Build capacity long-term: rather than only reacting to each crisis



## RELATED APPENDIX ITEMS

### APPENDIX 14

[Cost of Care MOU Template Between Law Enforcement and Sheltering Agency](#)

### APPENDIX 15

[Resource Assessment Tool](#)

# Financial Readiness: Budgeting and Cost Projection

## THE COST REALITY

As mentioned in [Section 1.3: How Financial Resources Affect the Ability to Respond](#), large-scale impounds generate substantial and sustained costs. Agencies should anticipate expenses including, but not limited to:

- Daily care costs: \$15–30+ per animal per day for cats and dogs; \$25–50+ per animal per day for large animals
- **Overall case costs: \$50,000–\$200,000+ for 50–100 animals held over a six-month period**
- Additional expenses: Initial veterinary examinations, emergency medical care, transport, and equipment

These figures are estimates and can vary significantly depending on species, case complexity, and duration. Realistic cost expectations enable sustainable responses.

## KEY CONSIDERATIONS TO UNDERSTANDING COSTS

- Can the agency afford daily care costs for the expected duration?
- What are the expected veterinary costs?
- Is Cost of Care recovery likely? What if it is not?
- Does the agency have emergency funding or fundraising capacity?

## BUILDING FINANCIAL READINESS BEFORE A CASE

Agencies are strongly encouraged to establish financial infrastructure before a large case arises. Recommended steps from [Section 1.1: Building Long-Term Capacity](#) include:

- Establishing an emergency reserve fund designated for large-scale cases
- Securing a line of credit to cover immediate expenses pending reimbursement or court-ordered cost recovery
- Identifying applicable grant sources and maintaining current eligibility
- Developing pre-approved internal protocols for emergency fundraising

## UTILIZE FINANCIAL EXPERTS

Whether within the agency itself or through a regional partner network, financial experts can provide critical support in cost estimation and management

Engaging these partners before a case begins, rather than during one, significantly improves an agency's ability to respond effectively.



### Cost of Care

*For a full discussion of cost of care documentation, court preparation, and recovery procedures, see [Part 5: Cost of Care and Financial Management](#).*



### RELATED APPENDIX ITEMS

**APPENDIX 13**  
[Cost of Care Form](#)

# SECTION 2

## CASE INITIATION — DECIDING THE COURSE OF ACTION

### 2.1

Before a Removal Decision is Made

Case Initiation Decision-Making Framework

### 2.2

The Three Critical Questions

### 2.3

Understanding Cruelty vs. Neglect

When Removal Decisions Are Not Straightforward

When Only Some Animals Meet the Threshold for Removal and Others Do Not

### 2.4

What Constitutes a Valid Complaint

Establishing Probable Cause

### 2.5

Assessing Urgency, Danger, and Removal Timelines

### 2.6

Coordinating with Expert Partners: Obtaining Legal, Operational, Medical & Financial Expertise Before Acting

# Before a Removal Decision Is Made

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## THE IMPOUND IS NOT INEVITABLE

Receiving a complaint or initiating an investigation does not mean that impoundment is inevitable.

Removal is one possible outcome of an investigation — not its default conclusion. Impoundment is a significant intervention with real consequences for animals, owners, and agency resources, and it should be pursued only when the evidence and circumstances clearly support it. Before any removal decision is made, agencies should be able to answer [three fundamental questions \(found in Section 2.2\)](#). If any one of them cannot be answered with confidence, the appropriate response is to pause, consult with partners, and build a stronger foundation before proceeding — not to move forward and manage the consequences later.

## WHEN REMOVAL IS UNLIKELY TO BE WARRANTED

Not all complaints involving animal welfare situations will require removal. Cases involving minor violations or questions about care standards — with no indicators of immediate danger or suffering — are generally addressed through education, routine inspection, and voluntary compliance rather than impoundment.

These cases typically involve concerns such as minor maintenance issues, licensing or permit violations, neighbor complaints about noise or odor, questions about appropriate care standards, or follow-up inspections on previously resolved matters. In these situations, the appropriate response is a routine site visit scheduled within 7–14 days, owner education, assessment of compliance with applicable local ordinances, and thorough documentation for future reference.

Removal is rarely warranted in these circumstances. The focus should remain on achieving voluntary compliance and connecting owners with resources to address deficiencies. When there is any uncertainty about how to classify a complaint or whether a situation may be escalating, agencies should consult with experienced partners before proceeding.

For further guidance, see:

[Section 2.3 – Understanding Cruelty vs. Neglect](#)

[Section 2.3 – When Removal Decisions Are Not Straightforward](#)

[Section 2.3 – Partial Threshold: When Only Some Animals Qualify](#)

## CONSIDERING ALTERNATIVES TO REMOVAL

**Before defaulting to removal, ask:**

- Is the owner elderly, overwhelmed, or experiencing a mental health crisis?
- Have they lost income, housing stability, or access to medical care?
- Could conditions be improved in place with support services?
- Would the owner voluntarily surrender the animals?
- Would a partial removal address immediate danger while wraparound services are arranged?

A voluntary surrender agreement allows owners to relinquish animals without the trauma and expense of impoundment proceedings, often producing better outcomes for everyone.

A coordinated approach that pairs social service intervention with animal welfare response frequently leads to more lasting solutions than removal alone.

Key questions to answer upfront:

- Can animals be safely cared for in place, or do they need to be moved?
- Which agencies have capacity for the species being impounded?
- What gaps exist, and who can fill them?



# The Three Critical Questions

Large-scale animal impoundment cases are complex and require agencies to make critical decisions that affect animal welfare, owner rights, agency resources, and legal outcomes. Before proceeding with removal, agencies benefit from being able to confidently answer three fundamental questions.

## QUESTION 1:

### IS THERE PROBABLE CAUSE?

Before any action can be taken, the investigating agency should establish that there is legal justification to intervene. Law enforcement agents are well-trained in establishing probable cause and understand the law as it pertains to their jurisdiction (who should be establishing cause and how they should establish it and give notice to parties).

Animal cruelty, neglect, and dangerous dog cases can involve circumstances and evidence that is unfamiliar to law enforcement partners that do not regularly investigate these types of cases.

Key factors experts consider for probable cause:

- Observable evidence shows violations of animal welfare laws
- Animals show signs of cruelty, neglect, or suffering
- Documented evidence (photos, video, veterinary assessments) support findings
- Standards of care are clearly not being met based on objective criteria
- A reasonable person would agree that legal violations are occurring

If the investigating agency CANNOT establish probable cause:

- PAUSE → Without probable cause there is likely no legal authority to remove animals
- Agencies may consider → Owner education, follow-up visit, or case closure

## QUESTION 2:

### DO THE ANIMALS NEED TO BE REMOVED?

Even if probable cause exists, removal may not be appropriate or feasible. Consider these factors:

#### Immediate Danger

- Are animals at risk of death or severe suffering?
- Is there immediate threat to health or safety?

#### In-Place Improvement

- Can conditions be corrected on-site?
- Is the owner willing and able to make immediate changes?
- Will a corrective action plan adequately protect animals?

#### Owner Surrender

- Is the owner willing to voluntarily surrender animals?
- Would surrender be faster and less traumatic than impoundment?

#### Transport Stress

- Will transport cause additional harm (especially to livestock)?
- Can animals safely be moved given their condition?

#### Timeline

- How quickly must action be taken?
- Can animals safely wait for additional resources or coordination?

Removal is typically necessary when:

- Animals are in immediate danger
- Owner is unwilling or unable to make necessary improvements
- Active cruelty is occurring
- Immediate medical care is required and not available on-site
- Conditions cannot be reasonably corrected in place

Alternatives to removal may work when:

- No immediate danger exists
- Owner is cooperative and capable/willing to make changes
- Corrective actions can be implemented quickly
- Monitoring and follow-up are feasible

## QUESTION 3:

### IS ONGOING CARE SUFFICIENTLY RESOURCED?

Although the legal basis for removal may exist, investigating agencies should establish a clear action plan for care; this should be determined before removal where possible. The plan should include location and method for animal sheltering (and how long that sheltering resource will remain available). It should also outline how those animals will receive appropriate care until the matter is resolved.

Essential considerations:

#### Agency's Capacity

- Physical space for this number and species of animals?
- Current shelter population and capacity?

#### Agency's Staffing

- Adequate staff to care for additional animals?
- Trained for this species?
- Capable of managing the documentation and legal requirements?

#### Agency's Financial Resources

- Afford daily care costs for the expected duration?
- Expected veterinary costs?
- Is Cost of Care recovery likely? What if it is not?
- Emergency funding or fundraising capacity?

#### Agency's Veterinary Support

- Veterinary support for initial assessments?
- Species-appropriate veterinary expertise available?
- Can the veterinarian provide expert testimony if needed?

#### Partnerships

- Partner shelters or rescues contacted?
- MOAs/MOUs in place for multi-agency coordination?
- Who will be the lead agency for sheltering (this may not be the same agency that investigates the case)?
- Coordinate case actions, cost of care concerns, and decision making?

#### Duration

- Length of stay sustainable?
- Prosecutor's timeline for case resolution?

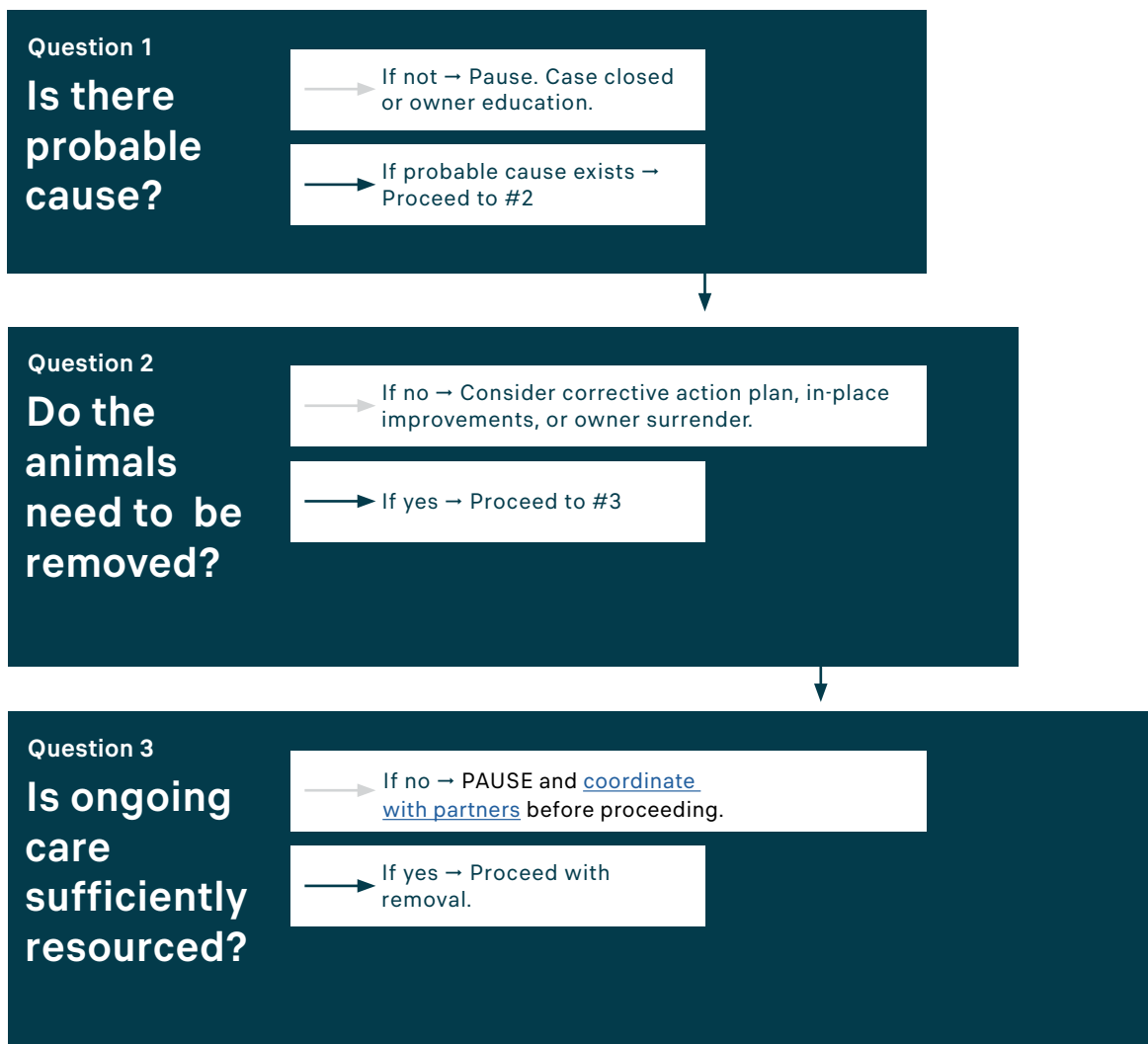
## If All Three Critical Questions Cannot be Answered

Not being able to answer all three questions does not mean animals must remain in danger. It means agencies may benefit from strengthening their approach before proceeding. **Actions to Consider:**

|          |                                                                                               |                                      |                                                                                                                                                                                                                                                                                                                             |
|----------|-----------------------------------------------------------------------------------------------|--------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Action 1 | <b>Stop</b>  | <b>Do not proceed with removal:</b>  | Making rushed decisions without answers to all three questions almost always leads to worse outcomes.                                                                                                                                                                                                                       |
| Action 2 | <b>Document everything</b>                                                                    | <b>thoroughly:</b>                   | Take extensive photos, videos, and notes. These preserve evidence and help partners assess the situation.                                                                                                                                                                                                                   |
| Action 3 | <b>Contact expert partners</b>                                                                | <b>with experience immediately:</b>  | <ul style="list-style-type: none"><li>• Larger shelters with experience in large-scale cases</li><li>• Specialized rescue organizations for the species involved</li><li>• State agencies (BAP, PACFA, CDA)</li><li>• Veterinarians with expertise in cruelty cases</li><li>• Prosecutors who handle animal cases</li></ul> |
| Action 4 | <b>Assess resources</b>                                                                       | <b>What is needed?</b>               | <ul style="list-style-type: none"><li>• Legal expertise or guidance?</li><li>• Shelter space and care capacity?</li><li>• Veterinary support?</li><li>• Financial resources?</li><li>• Species-specific expertise?</li></ul>                                                                                                |
| Action 5 | <b>Develop a coordinated plan</b>                                                             | <b>Work with partners to:</b>        | Answer the three questions before taking action.                                                                                                                                                                                                                                                                            |
| Action 6 | <b>If animals are in immediate danger</b>                                                     | <b>While coordination is ongoing</b> | <ul style="list-style-type: none"><li>• Consider whether emergency veterinary care can be provided on-site</li><li>• Explore whether owner will voluntarily surrender most critical animals</li><li>• Remove only animals in immediate life-threatening danger while coordination happens for the rest</li></ul>            |

## Three Critical Questions: Decision Flowchart

The flowchart below summarizes the three fundamental questions agencies should answer before proceeding with removal in large-scale animal impoundment cases



### Remember

These three questions protect animals, owners, and agencies. Taking time to answer them thoroughly helps prevent future concerns. When in doubt, pause and coordinate. Proceeding without fully answering these questions can lead to legal liability, unnecessary harm to animals and owners, unsustainable care conditions, and loss of public trust.

# Understanding Cruelty vs. Neglect

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While both cruelty and neglect are violations of animal welfare laws, they differ in intent, action, and how they're addressed. Understanding these differences helps determine appropriate intervention.

## CRUELTY (Intentional)

**Definition:** Intentional actions that cause unnecessary pain, suffering, or death to an animal.

*Examples:*

- Beating, kicking, or physically harming animals
- Dog fighting or other animal fighting operations
- Torture or intentional infliction of pain
- Deliberately withholding food, water, or medical care
- Intentional poisoning

## NEGLECT (Failure to Provide)

**Definition:** Failure to provide adequate care, often through ignorance, inability, or overwhelming circumstances.

*Examples:*

- Failure to provide adequate food leading to malnutrition
- Lack of clean water
- No shelter from weather extremes
- Untreated medical conditions or injuries
- Severe overcrowding
- Unsanitary living conditions causing health problems
- Hoarding situations

**Why the Distinction Matters:**

- Legal charges: Cruelty often carries more severe penalties
- Owner education: Neglect cases may benefit from education and resources
- Removal urgency: Active cruelty typically requires immediate removal
- Intervention approach: Neglect may allow for corrective action plans in some cases

## When Removal Decisions Are Not Straightforward

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Removal decisions are rarely simple. Investigators must balance animal welfare, legal authority, resource availability, and practical considerations.

## KEY CONSIDERATIONS:

**Immediate Danger vs. Correctable Conditions**

- Can conditions be immediately improved without removal?
- Is there a risk of death or severe suffering if animals remain?
- Will a corrective action plan adequately address concerns?

## Species-Specific Needs

- Livestock may be safer remaining on the property with improved care
- Companion animals may require different standards than farm animals
- Transport stress must be weighed against current conditions

## Owner Willingness and Capacity

- Is the owner willing to make immediate changes?
- Does the owner have resources to improve conditions?
- Is owner surrender an option?

## Shelter Capacity and Resources

- Can the sheltering agency handle this number/species?
- Are specialized resources available (livestock facilities, medical care)?
- What is the likely duration of impoundment?

## When Only Some Animals Meet the Threshold for Removal and Others Do Not

---

It is common to encounter situations where some animals on a property clearly meet the threshold for removal while others do not. This requires careful assessment and documentation.

## COMMON SCENARIOS:

### Scenario 1: Different Species, Different Conditions

- *Example:* Dogs are severely malnourished and kept in filthy kennels, but chickens in the yard appear healthy with adequate food, water, and shelter.
- *Decision:* Remove only the dogs. Document that chickens were assessed and met standards of care. Provide owner education about maintaining chicken care.

### Scenario 2: Selective Neglect Within Species

- *Example:* Property has 15 horses. Three are severely emaciated with untreated injuries. Twelve others have adequate body condition and care.
- *Decision:* Remove the three horses in immediate danger. Monitor remaining horses closely and require the owner to provide evidence of veterinary care for removed horses' conditions. Consider a corrective action plan for remaining animals.

### Scenario 3: Age/Status-Based Differences

- *Example:* Adult cats appear healthy, but kittens are showing signs of upper respiratory infection and inadequate nutrition.
- *Decision:* Remove kittens requiring immediate medical care. Assess whether the owner can provide adequate care for adults or if the entire group should be removed due to disease risk/spread.

### Scenario 4: Progressive Deterioration

- *Example:* Some animals clearly meet the removal threshold. Others are borderline but trending toward neglect.
- *Decision:* Remove animals in immediate danger. For borderline animals, consider: Can the owner realistically improve care with fewer animals? Will the removal of severely affected animals allow better care for the remaining? Document baseline condition and schedule follow-up.

### DOCUMENTATION REQUIREMENTS FOR PARTIAL REMOVAL:

- Clearly document why each animal was or was not removed
- Use consistent standards applied to all animals on the property
- Photograph and assess every animal, not just those removed
- Create individual records for each animal showing the condition at the time of visit
- Document decision-making rationale for partial vs. complete removal
- Establish a clear follow-up plan for animals not removed

*Important: Partial removal requires more intensive follow-up than complete removal. Agencies must have the capacity to monitor remaining animals and be prepared to remove them if conditions deteriorate.*



### Key Takeaways

- Use objective, documented standards—not personal opinions or preferences
- Probable cause requires observable facts and evidence, not suspicion
- Site visits must be systematic and thoroughly documented
- Cruelty (active harm) and neglect (failure to provide) require different approaches
- Removal decisions must balance animal welfare, ownership rights, legal authority, and practical resources
- Partial removal is sometimes appropriate but requires clear documentation and follow-up
- When in doubt, consult with experienced partners, prosecutors, and veterinarians

## What Constitutes a Valid Complaint

---

Understanding when legal intervention is warranted requires clear definitions and consistent standards. This section provides practical guidance on determining probable cause, evaluating complaints, conducting site visits, and making removal decisions.

### COMPLAINT VALIDITY

A valid complaint contains specific, observable information that allows an agency to assess whether animals may be in danger or legal violations may be occurring.

#### Valid complaints include:

- Specific observations (e.g., “no water visible in extreme heat,” “animals visibly thin,” “open wounds”)
- Timeframe information (when conditions were observed)
- Location details (address, property description)
- Number and type of animals (estimates acceptable)
- Supporting evidence when available (photos, videos, veterinary records)

#### Insufficient complaints that require follow-up:

- Vague concerns (“too many animals,” “doesn’t seem right”)
- Opinions without observable facts (“I don’t think they care for them properly”)
- Personal disputes unrelated to animal welfare
- Anonymous tips without corroborating information

*Note: Insufficient complaints are not invalid—they simply require the agency to gather more specific information before proceeding with the investigation.*

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## Establishing Probable Cause

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**Practical Definition:** Probable cause exists when facts and circumstances would lead a reasonable person to believe that animals are suffering from cruelty or neglect, or that violations of animal welfare laws are occurring.

Site visits should follow a systematic approach using objective standards. Investigators assess both individual animal welfare and environmental conditions.

#### Individual Animal Assessment:

- Body condition: Use standardized body condition scoring (BCS) for the species
- Physical health: Injuries, wounds, skin conditions, eyes, ears, coat/feather condition
- Behavior: Fear, aggression, social behavior, activity level appropriate for species
- Mobility: Lameness, difficulty standing, abnormal gait
- Evidence of medical care: Visible untreated conditions, lack of basic veterinary intervention

#### Environmental Conditions:

- Food and water: Availability, accessibility, cleanliness, appropriate for species
- Shelter: Protection from weather, adequate space, structural safety
- Sanitation: Waste accumulation, ammonia levels, parasite burden, dead animals
- Space: Overcrowding, ability to move freely, appropriate for species needs
- Safety: Hazards, sharp objects, dangerous materials, escape risks
- Ventilation: Air quality, temperature control, humidity

#### Documentation During Site Visits:

- Photographs and video of overall conditions
  - Individual animal photos showing condition and ID
  - Written notes with specific observations and measurements
  - Count of animals by species
  - Environmental measurements (temperature if relevant)
  - Owner statements (if present)
-

# Assessing Urgency, Danger, and Removal Timelines

## URGENCY LEVELS

Not all cases require the same response timeline. This section provides a framework to help agencies rapidly determine urgency level, risk, and appropriate removal timelines while ensuring decisions are consistent, defensible, and centered on animal welfare.

| LEVEL 1                                              |                                                                                                                   | EMERGENCY                                                                                                                                               |                                                                                                                                                                                                                                                              |
|------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Response Time                                        | Animal Situation                                                                                                  | Common Indicators                                                                                                                                       | Primary Action                                                                                                                                                                                                                                               |
| Within 2–4 hours                                     | Immediate life-threatening danger. Delay will likely result in death or severe, irreversible harm                 | Collapse/unresponsive animals; no water in extreme temperatures; life-threatening injury; animals trapped in hazardous conditions; active abuse         | <ul style="list-style-type: none"> <li>◇ Dispatch immediately</li> <li>◇ Contact veterinary support</li> <li>◇ Coordinate intake with shelter partners</li> <li>◇ Document conditions despite time constraints</li> <li>◇ Remove animals same day</li> </ul> |
| LEVEL 2                                              |                                                                                                                   | URGENT                                                                                                                                                  |                                                                                                                                                                                                                                                              |
| Response Time                                        | Animal Situation                                                                                                  | Common Indicators                                                                                                                                       | Primary Action                                                                                                                                                                                                                                               |
| Site visit within 24 hrs; resolution within 48 hrs   | Suffering (or at high-risk of), but not in immediate life-threatening danger. Conditions likely to worsen quickly | Severe malnutrition; untreated illness/injury; inadequate shelter with severe weather forecast; multiple animals in distress; owner absent/unresponsive | <ul style="list-style-type: none"> <li>◇ Conduct site visit within 24 hours</li> <li>◇ Document conditions thoroughly</li> <li>◇ Attempt owner contact</li> <li>◇ Prepare for potential removal</li> </ul>                                                   |
| LEVEL 3                                              |                                                                                                                   | PRIORITY                                                                                                                                                |                                                                                                                                                                                                                                                              |
| Response Time                                        | Animal Situation                                                                                                  | Common Indicators                                                                                                                                       | Primary Action                                                                                                                                                                                                                                               |
| Site visit within 3–5 days; resolution within 7 days | Substandard conditions but stable                                                                                 | Moderate malnutrition; poor sanitation; minor medical concerns; inadequate but non-dangerous shelter                                                    | <ul style="list-style-type: none"> <li>◇ Schedule timely inspection</li> <li>◇ Establish corrective action plan if appropriate</li> <li>◇ Provide education and resources</li> <li>◇ Document baseline conditions</li> </ul>                                 |
| LEVEL 4                                              |                                                                                                                   | ROUTINE                                                                                                                                                 |                                                                                                                                                                                                                                                              |
| Response Time                                        | Animal Situation                                                                                                  | Common Indicators                                                                                                                                       | Primary Action                                                                                                                                                                                                                                               |
| Site visit within 7–14 days                          | Minor concerns or compliance issues                                                                               | Property maintenance issues; licensing violations; nuisance complaints; general care questions                                                          | <ul style="list-style-type: none"> <li>◇ Conduct scheduled inspection</li> <li>◇ Provide education and follow-up as needed</li> </ul>                                                                                                                        |

## Quick Danger Assessment

Evaluate the situation across the factors below to determine overall urgency.

### KEY FACTORS

#### Immediacy of Threat

- Hours → highest urgency
- Days → moderate urgency
- Stable → lower urgency

#### Number of Animals Affected

- Many animals in distress = increased urgency

#### Animals' Vulnerability

- Neonates, elderly, or medically compromised animals elevate risk

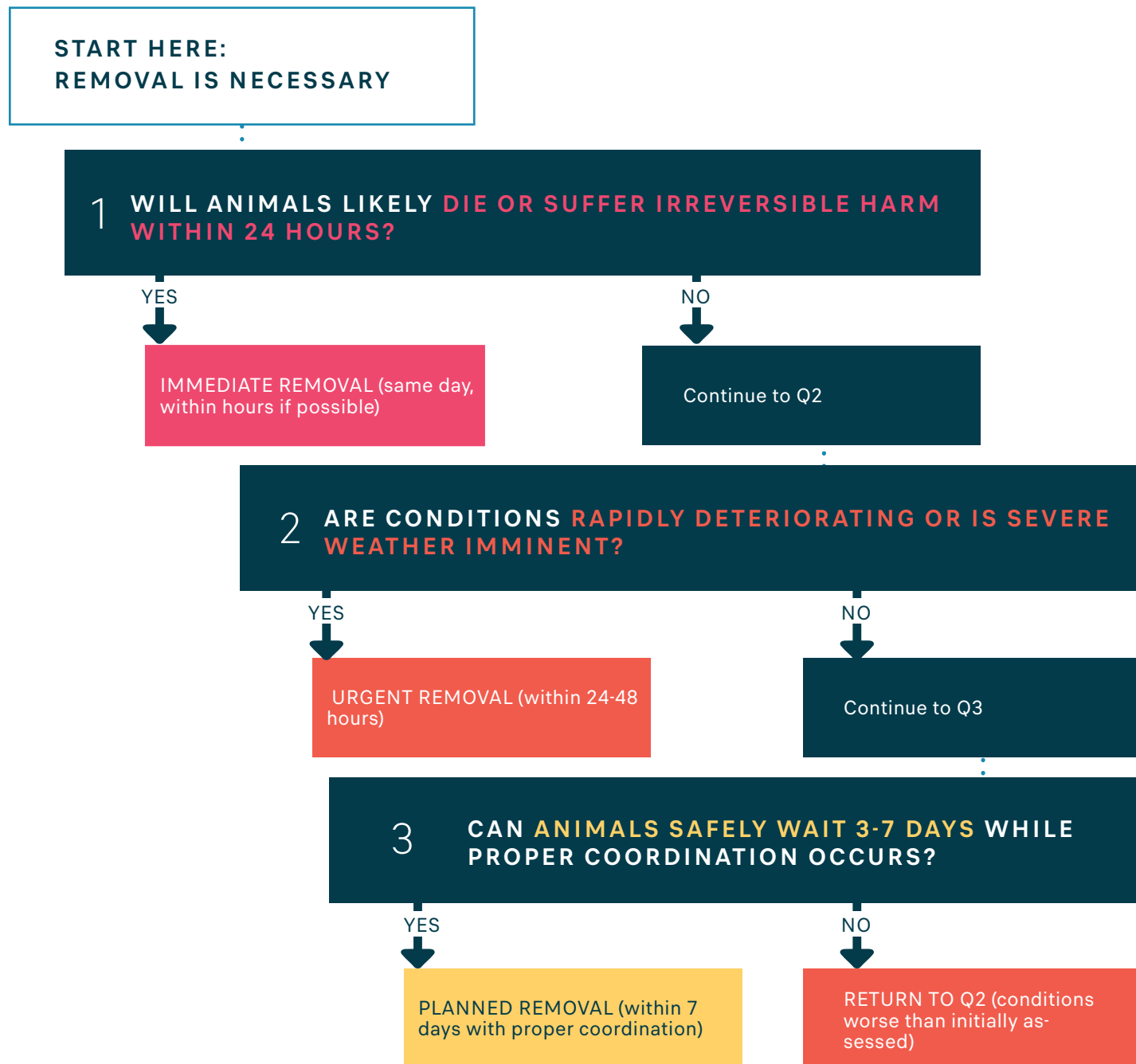
#### Environmental Conditions

- Extreme heat/cold, lack of shelter, or unsafe surroundings increase urgency

If multiple factors indicate high risk, classify at a higher urgency level. When uncertain, err on the side of faster intervention.

## Removal Timeline Decision Tree

Once an agency has determined removal is necessary, they can use this decision tree to establish the appropriate timeline.





# Special Considerations Affecting Removal Timelines

## Weather and Environmental Factors

- Extreme heat (90°F+): Lack of water/shade becomes emergency within hours
- Extreme cold (below 20°F): Inadequate shelter for companion animals becomes urgent
- Severe weather forecast: Upgrade urgency level by one if severe weather expected within 48 hours
- Natural disasters: Owner evacuation or property damage requires immediate assessment

## Species-Specific Timing

- Neonates: Decompensate rapidly, always emergency or urgent
- Small animals: Limited reserves, deteriorate faster than large animals
- Livestock: Can often wait longer; transport stress is significant consideration
- Exotic animals: Specialized care urgent; coordinate carefully

## Legal and Practical Constraints

- Search warrant timeline: If warrant needed, factor in 24-48 hour acquisition time
- Shelter capacity: Must have confirmed space before removal—never remove without a plan
- Large-scale cases: Require more coordination time; start at higher urgency if many animals
- Weekend/holiday: Limited resources may necessitate waiting until business hours for non-emergency

## Documenting Urgency and Timeline Decisions

Assessment of urgency and removal timeline decisions must be thoroughly documented to support legal proceedings and demonstrate a reasonable response.

### Required Documentation:

- Urgency classification: State which level (1-4) and why
- Danger assessment score: Use the matrix, document scores for each factor
- Timeline justification: Explain why this timeline is appropriate
- Factors considered: Weather, species, owner cooperation, shelter capacity
- Alternative options evaluated: Why in-place improvement was/wasn't appropriate
- Consultation: Document discussions with veterinarians, prosecutors, partners
- Time-stamped photos: Visual evidence of conditions at time of assessment



### CRITICAL REMINDERS

- Urgency assessment must be based on animal welfare, not convenience or resource availability
- Do not downgrade urgency just because removal is logistically difficult
- If animals are in danger, not having shelter space does NOT justify delaying removal—find alternatives
- Re-assess urgency if conditions change or deteriorate
- When in doubt, consult with experienced partners immediately
- Better to respond too quickly than too slowly—err on side of caution for animal welfare



### Key Takeaway

Animals should never remain in harmful conditions longer than is reasonably necessary to ensure their safety and well-being.

# Coordinating with Expert Partners

## OBTAINING LEGAL, OPERATIONAL, MEDICAL & FINANCIAL EXPERTISE BEFORE ACTING

Successful large-scale cases depend on relationships built before emergencies arise. Invest time now in connecting with potential partners—shelters in adjacent counties, species-specific rescues, veterinarians, transport companies, and experienced agencies that have handled complex cases.

Agencies should not limit their network to animal welfare organizations. Connections should be built with social service agencies, adult protective services, mental health crisis teams, housing assistance programs, and aging services.

Many animal cruelty and neglect cases have underlying human welfare issues, financial crisis, mental illness, hoarding disorder, cognitive decline, or disability, that cannot be solved by removing animals alone. Social service partners can provide resources that address root causes: connecting owners to food assistance, healthcare, home care services, or mental health treatment.

Knowing who to call and having pre-established communication channels dramatically reduces response time when facing an urgent situation. Maintain a current resource list with accurate contact information, capacity details, and specializations — and review it regularly to ensure it remains current.

Large-scale impoundment cases require specialized knowledge, resources, and experience that most agencies cannot maintain entirely within their own staff. Before a case is initiated, agencies should confirm that qualified expert partners are either on staff or accessible and prepared to assist. For agencies or investigators with limited experience in large-scale animal welfare cases, the absence of an experienced partner network is one of the most significant — and most preventable — risk factors for case failure.

**Attempting to handle complex cases without adequate expert support significantly increases the risk of:**

- Animals suffering in inadequate care
- Failed prosecutions due to evidence issues
- Financial crisis for the agency
- Legal liability from improper procedures
- Public criticism and loss of community support
- Burnout of staff and volunteers

## WHAT EXPERT PARTNERS PROVIDE:

### Investigative Expertise:

- Guidance on probable cause and evidence collection
- Experience with search warrants and court procedures
- Knowledge of Cost of Care requirements

### Medical Expertise:

- Veterinary assessment and documentation
- Expert testimony capability
- Treatment planning and oversight

### Operational Expertise:

- Large-scale sheltering experience
- Species-specific care knowledge
- Incident Command System implementation
- Resource coordination and logistics
- Cost estimation and management



## ANIMAL IMPOUND COORDINATION TEMPLATES

**APPENDIX 14**  
[MOU Cost of Care Template Between  
Law Enforcement and Sheltering Agency](#)

**APPENDIX 18**  
[Shelter and Transport  
Help Request Form](#)

**APPENDIX 19**  
[MOU Template Between  
BAP and Holding Facility](#)

**APPENDIX 20**  
[MOA for  
Multi-Agency Coordination](#)

# SECTION 3

## LAWS AND PROCEDURES GOVERNING ANIMAL CRUELTY AND IMPOUND CASES

### 3.1

Authority to Investigate and Impound

### 3.2

Responsibilities of Investigators

Common Challenges for Investigators

### 3.3

Law Enforcement Case Flow: From Call to Impoundment

### 3.4

Legal Status

Cost of Care

### 3.5

Evidence Collection and Chain of Custody Resources

Documentation Standards

# Which Laws Govern Animal Welfare in Colorado?

In Colorado, animal cruelty and neglect investigations are governed by state statutes and local ordinances. This handbook focuses on Colorado-specific legal frameworks.

## FEDERAL LAWS

While the primary responsibility for animal cruelty investigations rests at the state and local level, federal laws like the Animal Welfare Act (AWA) regulate certain aspects of animal care and use, particularly for research facilities, exhibitors, and dealers. Violations of the AWA can trigger investigations by the United States Department of Agriculture (USDA).

## STATE LAW

Colorado has specific laws in Title 18 of the Criminal Code under Article 9, specifically, 18-9-201 through 18-9-209, C.R.S., that address animal cruelty and neglect. These laws set out definitions, severity of penalties, and the types of animals covered. Colorado state law empowers law enforcement officers and agents commissioned by the Bureau of Animal Protection (BAP) under the Colorado Department of Agriculture to conduct investigations and enforce the laws. Pet animal care facilities are also regulated by the Colorado Department of Agriculture under the Pet Animal Care and Facilities Act (PACFA), which addresses the number of domestic animals an individual can have before licensure is required and dictates the standards with which animals must be cared for in licensed facilities. The PACFA statutes, rules, and regulations can provide separate grounds for investigation and enforcement.

### State-Level Policymakers

#### COLORADO GENERAL ASSEMBLY (STATE LEGISLATURE)

- Who: Composed of the Colorado House of Representatives and the Colorado Senate.
- Sources of Authority:
  - » Colorado State Constitution
  - » United States Constitution
- Role: Enacts statewide animal welfare laws, such as -
  - » Anti-cruelty statutes
  - » Livestock welfare standards
  - » Companion animal protections
  - » Emergency planning for animals

#### COLORADO DEPARTMENT OF AGRICULTURE (CDA)

- Who: The Division of Animal Welfare oversees enforcement and regulation of animal care facilities, cruelty investigations, and equine welfare grants.
- Sources of Authority:
  - » Colorado State Statutes and Regulations
- Role: Oversees Programs -
  - » PACFA: Licenses and inspects pet care facilities.
  - » BAP: Investigates animal cruelty and neglect.

# Which Laws Govern Animal Welfare in Colorado?

## LOCAL (COUNTY & MUNICIPAL) LAW

### Home Rule Cities

In Colorado, “Home Rule” empowers local governments with the requisite charter to act and legislate on local matters. In general, home rule ordinances address local matters that **supersede** state law. However, in matters where there are both statewide and local concerns, state laws may take precedence over conflicting home rule ordinances.

### Cities Without Home Rule

Without a home rule charter, local governments are strictly subject to the laws of the state.

### Local Ordinances

Where cities and counties have local authority to govern animal welfare, they often have ordinances addressing basic safety and care standards including cruelty and neglect, dangerous animals, stray animals, animal limits, and licensing requirements for pets. These local ordinances often provide the original basis for investigation and enforcement.

## County and Municipal-Level Policymakers

### COUNTY COMMISSIONERS

- Role: Pass county ordinances related to animal control, zoning for animal facilities, and emergency animal response. Can fund and support County Animal Response Teams (CARTs) and local humane societies.
- Sources of Authority
  - » County Ordinances
  - » Colorado State Constitution
  - » United States Constitution

Example: A county may adopt stricter tethering laws than are required by state law or may fund animal shelter improvements.

### CITY AND TOWN COUNCILS

- Role: Enact local ordinances for matters of local control
- Sources of Authority:
  - » City Charter (in some cases, these are home rule charters)
  - » City Ordinances, Colorado State Constitution and Statutes, United States Constitution and Statutes, State and Federal Common (case) Law
- Types of local ordinances impacting animals:
  - » Limits on the number and type of animals per household
  - » Leash laws
  - » Breed-specific legislation
  - » Licensing, ID, and vaccination requirements
  - » Urban livestock or backyard hens

# Who Investigates Animal-Related Cases in Colorado?

A variety of agencies and individuals are authorized to investigate animal cruelty and neglect cases, depending on the jurisdiction and the nature of the alleged offense.



## Law Enforcement

Police departments, sheriff's offices, and other general law enforcement agencies often have the **primary authority to investigate animal cruelty as a criminal offense**. They can make arrests, seize animals, and prepare cases for prosecution.



## Animal Control Officers (ACOs)

Often the first responders, ACOs are employed by local governments or humane societies. They can issue warnings, write citations, and seize animals. Their exact powers vary by local ordinance and state statute.



## Bureau of Animal Protection (BAP)

BAP agents are commissioned by the Colorado Department of Agriculture after meeting minimum training standards. The BAP has 100 commissioned agents statewide who partner with local law enforcement and provide specialized expertise in livestock and equine cases, balancing accepted agricultural practices with legal protections against suffering.



## Colorado Department of Agriculture (CDA)

The CDA houses several distinct programs that each handle different aspects of animal protection.

**Pet Animal Care and Facilities Act (PACFA)** is a licensing and regulatory program. It requires pet animal facilities to obtain and maintain a state license to operate. PACFA staff may work alongside animal control when welfare concerns arise at a licensed or unlicensed facility, and are required by statute to report suspected cruelty or neglect to local law enforcement or the BAP. Importantly, PACFA has no authority to enforce local animal control ordinances, zoning codes, or limits on the number of pets someone may own — those fall to city, county, or planning and zoning authorities. Additionally, PACFA's authority does not extend to independent pet sitters — whether caring for animals in the client's home or the sitter's home — or to boarding arrangements involving 15 or fewer pets.

**Bureau of Animal Protection (BAP)** is the CDA's investigative and enforcement arm under the Animal Protection Act, focused on preventing neglect, mistreatment, and abandonment of domestic and companion animals statewide. (See the full BAP section above for details.)

**The State Veterinarian** has authority to investigate cases involving infectious disease that may be linked to animal cruelty or neglect.

**Brand Inspectors** verify livestock ownership before transport or sale, investigate livestock theft claims, and inspect and license certified feedlots.

## OTHER PARTIES INVOLVED



### Veterinarians

Veterinarians are mandatory reporters under C.R.S. 13-315-120. While not investigators, they can document injuries, identify signs of abuse or neglect, and provide expert testimony.



### Sheltering Partners

Organizations sheltering the impounded animals at the request of the investigating agency, often these are privately funded agencies with sheltering capacity.

# What is Colorado's State Regulatory Authority for Animal Welfare?

| Agency                                                         | Can Enforce                                                                                                                                                                                                                                 | Evaluation Standards                                                                                                                                                                                               | Cannot Enforce                                                                                                                                                                          |
|----------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| BUREAU OF ANIMAL PROTECTION (BAP)                              | <ul style="list-style-type: none"> <li>State animal cruelty statutes (C.R.S. 18-9-201 through 18-9-209)</li> <li>Dog fighting laws</li> <li>Animal neglect cases</li> </ul>                                                                 | <ul style="list-style-type: none"> <li>Must use objective standards appropriate to species</li> <li>Body condition scoring</li> <li>Veterinary assessment</li> <li>Environmental conditions</li> </ul>             | <ul style="list-style-type: none"> <li>Local ordinances (e.g., animal limits, leash laws)</li> <li>PACFA facility regulations (that is PACFA's role)</li> </ul>                         |
| PET ANIMAL CARE AND FACILITIES ACT (PACFA)                     | <ul style="list-style-type: none"> <li>Licensing requirements for facilities above pet animal thresholds, i.e., 15+ cats and dogs</li> <li>Standards of care in licensed facilities</li> <li>Facility inspections and compliance</li> </ul> | <ul style="list-style-type: none"> <li>PACFA regulations</li> <li>Facility cleanliness and sanitation</li> <li>Adequate food, water, shelter</li> <li>Veterinary care protocols</li> </ul>                         | <ul style="list-style-type: none"> <li>Criminal cruelty cases (must refer to law enforcement/BAP)</li> <li>Individual owners with &lt;15 animals (below licensing threshold)</li> </ul> |
| OTHER PROGRAMS IN THE COLORADO DEPARTMENT OF AGRICULTURE (CDA) | <ul style="list-style-type: none"> <li>Livestock welfare standards</li> <li>Livestock breeding operations</li> <li>Disease control measures</li> <li>Brand inspection requirements</li> </ul>                                               | <ul style="list-style-type: none"> <li>Species-appropriate livestock standards</li> <li>Industry best practices</li> <li>Veterinary guidance for livestock</li> <li>Production animal welfare standards</li> </ul> | <ul style="list-style-type: none"> <li>Companion animal statutes and ordinances</li> <li>Criminal prosecution (must coordinate with law enforcement)</li> </ul>                         |

**IMPORTANT:** State regulatory programs often have inspection and administrative enforcement authority (fines, license revocation) but not criminal prosecution authority. For criminal cruelty cases, they must coordinate with local law enforcement or BAP-commissioned agents.

**Evaluation standards must be:**

- Objective and documented
  - Species-appropriate
- Based on recognized veterinary/industry standards
  - Consistently applied

## How is Authority Determined in Multi-Agency Cases?

Partner organizations providing sheltering services operate under the authority of the legal agency. They document conditions and provide care but cannot make legal decisions about disposition, prosecution, or return of animals. All legal decisions remain with the agency holding legal authority.

[MOAs/MOUs must clearly define these boundaries before cases begin.](#)

| Role                                                           | Authority                                                      | Limitations                                                                       | Example                                                                           |
|----------------------------------------------------------------|----------------------------------------------------------------|-----------------------------------------------------------------------------------|-----------------------------------------------------------------------------------|
| LOCAL LAW ENFORCEMENT AGENCY                                   | Legal authority for investigation, search, seizure             | May lack animal care expertise (sheriff/police department) or sheltering capacity | Sheriff's office executes warrant but partners with humane society for sheltering |
| BUREAU OF ANIMAL PROTECTION (BAP)                              | Authority to investigate and enforce state animal cruelty laws | Jurisdiction limited to state statutes (not local ordinances)                     | BAP agent investigates but coordinates with local shelter                         |
| PET ANIMAL CARE AND FACILITIES ACT (PACFA)                     | Regulatory/inspection authority for facilities                 | Limited to specific statutory jurisdiction and limited criminal authority         | PACFA inspects licensed and unlicensed companion animal facilities                |
| OTHER PROGRAMS IN THE COLORADO DEPARTMENT OF AGRICULTURE (CDA) | Regulatory/inspection authority for facilities and livestock   | Limited to specific statutory jurisdiction                                        | CDA oversees livestock                                                            |
| SHELTERING AGENCY (NON-COMMISSIONED)                           | Provides care, documents conditions, manages animals           | NO legal authority to seize or prosecute                                          | Private shelter provides placement for animals seized by law enforcement          |
| VETERINARIAN                                                   | Medical expertise, mandatory reporting                         | Cannot seize animals or conduct searches without law enforcement                  | Provides expert assessment and testimony                                          |



# Responsibilities of Investigators

Regardless of the specific agency or individual involved, effective investigation of animal cruelty and neglect requires a thorough and systematic approach. Key responsibilities include:

## RECEIVING AND DOCUMENTING COMPLAINTS:

Promptly responding to reports of alleged cruelty and accurately documenting all initial information.

**ON-SCENE ASSESSMENT:** Conducting careful and objective assessments of the animal's condition, living environment, and any potential evidence of cruelty or neglect. This often involves observing the animal's physical state, behavior, and surroundings.

**EDUCATION AND PREVENTION:** In some cases, investigators also play a role in educating the public about responsible pet ownership and preventing future instances of cruelty.

**EVIDENCE COLLECTION:** Gathering evidence (e.g., photographs, videos, and/or physical evidence such as animal samples or other items), interviewing witnesses, and documenting observations in detail. A proper chain of custody for evidence is critical, especially in cases where the evidence is a living animal whose condition can change rapidly.

**ANIMAL SEIZURE AND CARE:** When necessary, lawfully seizing animals to ensure their safety and providing immediate veterinary care and shelter.

**CASE BUILDING:** Compiling comprehensive case files, including evidence, witness statements, veterinary reports, and legal documentation to support potential prosecution.

**COLLABORATION AND COORDINATION:** Working closely with law enforcement, prosecutors, veterinarians, and animal shelters to ensure a coordinated and effective response.

**TESTIMONY:** Providing clear and concise testimony in court regarding observations, evidence collected, and actions taken during the investigation. Where appropriate, being prepared to be a subject matter expert and provide expert opinions or testimony.

# Common Challenges in Investigations

Investigations into animal cruelty and neglect can present unique challenges:



Effective investigations are vital for protecting animals from harm, holding offenders accountable, and promoting animal welfare within communities.

**SUBJECTIVITY:** Defining “neglect” or “mistreatment” can sometimes be subjective, requiring careful assessment of standards of care.

**EMOTIONAL NATURE:** These cases are often emotionally charged, requiring investigators to maintain professionalism and objectivity.

**RESOURCE LIMITATIONS:** Many agencies face limited resources, including personnel, funding, and specialized equipment, which can hinder thorough investigations.

**LEGAL COMPLEXITY:** The varying laws and jurisdictional boundaries can create legal complexities in pursuing cases.

**OWNER COMPLIANCE:** Securing cooperation from animal owners can be difficult, and some may resist investigations or attempts to seize animals.

**EVIDENCE GATHERING:** In animal cruelty cases, investigators must build their case without any statement from the primary victim. While direct evidence may exist (such as percipient witness statements or surveillance footage), investigators often rely heavily on circumstantial evidence, veterinary reports, and expert opinions. Also, because animals in poor condition are likely to receive interventions and additional care after an investigation begins, from an evidence-gathering perspective, it is important to preserve a snapshot of their original condition, as they existed before any treatment or supplemental nutrition was provided. Similarly, an animal's improvement due to proper care also holds evidentiary value and should be documented.

# Law Enforcement and Support Resources

## Law Enforcement Agencies and Shelters by County

Appendix Item 1 provides a comprehensive list of all Municipal Police Departments, Animal Control Agencies, Sheriff's Offices, and Animal Shelters in each Colorado county.



### APPENDIX 1 Law Enforcement and Shelters by County

## Federal and Regional Support

[USDA APHIS & Federal Influence](#) - The APHIS Veterinary Service supports disease surveillance and emergency response. Animal Care Emergency Programs provide technical guidance and coordination during disasters.

## Additional Appendix Items



### APPENDIX 2 Incident Command System Training



### APPENDIX 3 Completing an Incident Action Plan



### APPENDIX 4 How to Complete the ICS 201 Form



### APPENDIX 5 Animal ID Numbering System



### APPENDIX 6 Sample Owner Surrender Form



### APPENDIX 6A Owner Surrender Conversation Guide



### APPENDIX 7 Animal Evidence Tracking Form

## Emergency Response Resources

Several Colorado counties have dedicated animal response teams that respond to emergencies. Some have search and rescue capabilities for more resource-intensive animal needs. These resources can change based on funding and training availability; thus, it is important to verify their readiness before relying on these agencies as part of the animal impound or animal emergency management plan.



### APPENDIX 1A Colorado Animal Response Resources



### APPENDIX 8 Medical Evaluation of Abuse/Neglect Case Form



### APPENDIX 9 Dog Hair/Skin Triage Form



### APPENDIX 10 Equine Exam Form



### APPENDIX 11 Body Score Conditioning Resources



### APPENDIX 14 Cost of Care MOU Template Between Law Enforcement and Sheltering Agency



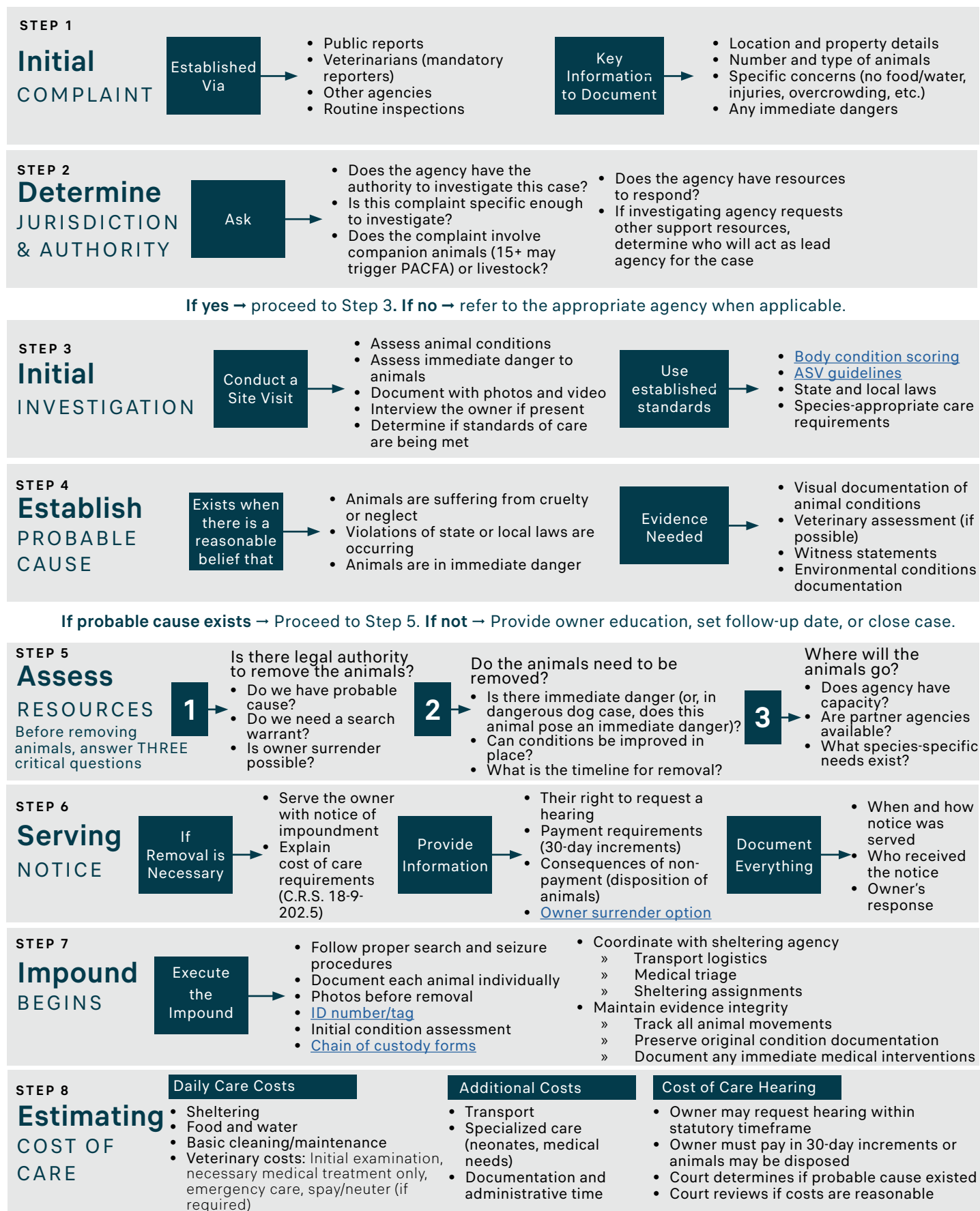
### APPENDIX 19 BAP and Holding Facility MOU Template



### APPENDIX 20 MOA for Multi-Agency Coordination

# Law Enforcement Case Flow - From Call to Impoundment

The typical case progression is illustrated in the figure below.



## KEY PRINCIPLES FOR A SUCCESSFUL CASE FLOW AND COMMON MISTAKES

In Colorado, animal cruelty and neglect investigations are governed by state statutes and local ordinances. This handbook focuses on Colorado-specific legal frameworks.

### KEY PRINCIPLES FOR SUCCESSFUL CASE FLOW

- Document everything at every step
- Coordinate early with prosecutors, shelters, and veterinarians
- Use consistent, objective standards for assessments
- Consider owner surrender as an option throughout the process
- Move quickly but carefully—time is critical for animal welfare
- Understand legal authority and limitations
- Don't proceed without addressing all three critical questions
- Maintain chain of custody for animals as evidence

### COMMON PITFALLS TO AVOID

- Acting without establishing probable cause
- Failing to coordinate with partner agencies before removal
- Inadequate documentation of animal conditions
- Not considering in-place improvements or owner surrender
- Removing animals without confirmed shelter capacity
- Delaying cost of care hearings
- Inconsistent application of care standards

# Legal Status of Impounded Animals

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Once animals become the subject of state or local cruelty, neglect, or other complaints, and their welfare is in question, the law generally requires that certain procedures are followed to protect owners from unlawful seizure of their property and to protect animals from care or environments that do not meet the requisite standards defined in the law.

## COST OF CARE LEGAL PROCESS

A Colorado animal impound case typically begins when an animal is the subject of a complaint in connection with suspected cruelty, neglect, or animal fighting. From that point, the path the case takes is driven largely by the choices the animal owner makes.

The first decision point in these cases is whether the owner decides to relinquish the animal before an impoundment occurs. An owner who relinquishes at this stage surrenders the animal to the agency, which then determines its disposition.

An owner who declines to surrender elects to maintain ownership of the animal. An impounding agency will then typically seize the animals in the context of a warrant or, where an animal faces immediate danger, under exigent circumstances.

The next decision point comes when the owner decides whether or not to respond to the seizure at all. If the owner does nothing, the animal becomes the property of the impounding agency by default.

Under C.R.S. § 18-9-202.5, to help owners make these decisions, the impounding agency provides the owner with an impound notice that lists the owner's rights, including the ability to request a hearing, notes where payments can be posted, and details the reasonable cost of care for the animal while the case is pending.

If the owner contests the impoundment, they have the opportunity to challenge the probable cause underlying the seizure by requesting a hearing within 10 days of the impound. The owner may also contest the reasonableness of the cost of care at this same hearing. Once requested, the hearing must occur within 10 days, at which point the court determines whether the cost of care amount is reasonable and whether probable cause existed to remove the animals. Because of the significant legal consequences that result from the hearing review and the resources being expended to care for living animals, it is imperative that the cost of care/probable cause hearing occur in a timely and swift manner.

The cost of care stage is a pivotal point in the impound process in Colorado and the point at which most ownership questions are actually decided. Cost of care is paid over fixed periods. In Colorado, payments are made in 30-day increments. If the owner never posts that initial bond, the animal is forfeited by default.

Critically, payment of cost of care is a recurring obligation, rather than a one-time fee. An owner who posts the first period's payment must keep renewing it for each successive period as the case continues. If the owner posts the first payment but later lets a renewal lapse, the animal is forfeited at that moment, mid-case.

If the owner does keep the cost of care payments current, the case reaches its conclusion at the criminal trial. A conviction for cruelty or animal fighting sometimes results in the animal being forfeited, often accompanied by a prohibition on owning animals for a set period. An acquittal or dismissal, by contrast, points toward the animal being returned to the owner with the costs of the animal's care often being borne by the impounding agency.

# Cost of Care: Legal Authority and Owner Liability

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Before cost of care can be collected, a legal foundation must be established. Under Colorado Revised Statutes § 18-9-202.5, when animals are lawfully seized and impounded due to alleged cruelty, neglect, or other violations, the owner or custodian becomes liable for the reasonable costs associated with the animals' care, keeping, and disposition. The provisions below define what the law requires — who owes costs, under what conditions, and what happens if they don't pay. For guidance on calculating, documenting, and recovering those costs operationally, [see Section 5](#).

## KEY LEGAL PROVISIONS

**Court Determination:** A court must determine that probable cause existed for the seizure and that the costs charged by the impounding agency are reasonable.

### **Key Determinant: Actual conditions and care provided at owner's property/residence**

- » It is important to note that the owner is being required to pay for the basic standard of care that they were legally obligated, but failed, to provide at their property/residence.
- » The care that agencies provide is based on the species-specific, well-established basic standards of care in Colorado in the location that the animals are being sheltered after impoundment.
- » While owners often claim that they can provide the same care for less at their property/residence, note that the animals were not actually being provided that basic level care at their home location leading to the conditions that drove impoundment. At the time of impoundment, the owner has typically been given ample opportunity to increase their standard of care to legally acceptable levels before impound was initiated.
- » By failing to meet basic care standards before impoundment, the owner is now subject to the standard costs in the location in which animals are being sheltered and the purported cost of care at the owner's home is no longer an option given their failure to comply.

### **Key Determinant: Care Standards Required By Law**

- » Owners or defense attorneys may claim that local and prevailing conditions are less restrictive or based on older models of animal care.
- » Law enforcement agencies are not able to bend rules or create new standards for select groups of citizens.
- » State and local cruelty, neglect, and dangerous dog laws dictate basic standards of care regardless of practices in a given location. Historical practices or mutual agreements among neighbors do not relieve law enforcement agencies of their duty to comply with the law.

## COST OF CARE OPERATIONAL PROCESS

The legal framework above establishes the authority to collect cost of care and the conditions under which owners are liable. Translating that authority into practice — calculating defensible daily rates, tracking expenses across a multi-agency response, presenting costs at hearings, and pursuing recovery — requires a separate operational framework.

[Section 5: Cost of Care and Financial Management](#) covers all of that in detail, including:

- Documenting reasonable costs for court review
- Standardizing cost calculations across case types
- Minimum daily boarding fees for large-scale shared impounds
- Presenting costs at hearings
- Common issues and their solutions
- Cost recovery and reimbursement
- Best practices for financial management

# Documentation Standards

Regardless of whether animals are removed or left in place, thorough documentation is essential to support the decision and any subsequent legal proceedings.

## REQUIRED DOCUMENTATION:

- **Photographs and video:** Overall conditions, individual animals, environmental hazards
- **Written notes:** Detailed observations with fact-based statements with high specificity; opinions and conjecture are not useful, nor are emotional statements
- **Standards applied:** Document which standards are used and how animals are measured
- **Owner statements:** Record conversations with owner or bystanders/witnesses
- **Veterinary assessment:** If available, document vet findings
- **Decision rationale:** Explain why removal was or was not necessary
- **Weather conditions:** Temperature, precipitation, wind relevant to animal welfare
- **Follow-up plan:** If animals remain, document monitoring schedule

## Evidence Collection and Chain of Custody Resources



**APPENDIX 5**  
Animal ID Numbering System



**APPENDIX 9**  
Dog Hair/Skin Triage Form



**APPENDIX 6**  
Sample Owner Surrender Form



**APPENDIX 10**  
Equine Exam Form



**APPENDIX 6A**  
Owner Surrender Conversation Guide



**APPENDIX 11**  
Body Score Conditioning Resources



**APPENDIX 7**  
Animal Evidence Tracking Form



**APPENDIX 12**  
Chain of Custody Form



**APPENDIX 8**  
Medical Evaluation of Abuse/Neglect Case Form



**APPENDIX 13**  
Cost of Care Form

# SECTION 4

## OPERATIONAL RESPONSE — THE IMPOUND

### 4.1

Case Management Overview

Initial Case Assessment

### 4.2

Transport of Impounded Animals

### 4.3

Placing and Sheltering Impounded Animals

### 4.4

Species-Specific Considerations (cats, dogs, equines, livestock, wildlife, exotics, etc.)

### 4.5

Investigations and Response Guidelines



## Case Management Overview

When approaching a potential large-scale impound case, agencies should begin by thinking beyond the immediate logistics of animal removal. Key considerations include clarifying the scope of the situation, identifying the lead agency and partners, and establishing early communication channels. Agencies should also anticipate documentation needs, legal obligations, and resource requirements, such as personnel, shelter space, veterinary care, and funding. Taking time up front to align on process planning, decision-making authority, and inter-agency roles helps ensure that the case is managed effectively, with animal welfare, human welfare, and public safety all taken into account.

### KEY CONSIDERATIONS WHEN APPROACHING A LARGE-SCALE IMPOUND CASE

**Clarify scope of the case:** Estimate the number and types of animals, assess immediate welfare concerns, and consider potential human and public safety risks.

**Identify lead agency and partners:** Determine who has legal authority, who will coordinate the case, and what roles other agencies will play.

**Establish early communication channels:** Set up clear lines for inter-agency updates, documentation sharing, and public messaging.

**Plan for documentation:** Ensure consistent, accurate, and timely records of observations, actions taken, and resources used.

**Review legal and ethical obligations:** Understand jurisdictional authority, applicable laws, and confidentiality requirements.

**Anticipate resource needs:** Consider staffing, equipment, transport, shelter capacity, veterinary support, and financial implications.

**Define decision-making authority:** Agree in advance on how urgent or disputed decisions will be made to avoid confusion in the field.

**Prioritize welfare holistically:** Balance animal welfare, public health, and human welfare considerations from the outset.

## Initial Case Assessment

**The initial hours and days of a potential animal impound case are pivotal to achieving effective resolution.** From the moment a complaint or request for assistance is received, the investigating agency must carefully assess the scope of the situation, identify immediate concerns, evaluate available resources, and determine appropriate next steps within applicable federal, state, and local legal frameworks.

A thorough initial assessment is especially **critical in suspected hoarding or large-scale impound cases**, as the first contact may be the only opportunity to observe animals and property in their typical condition. While some complaints may be resolved quickly, all require careful documentation to support future tracking or community inquiries.

**Detailed, accurate records of animal conditions and property circumstances are essential** at the assessment stage—and at impoundment if removal occurs—as conditions may change once an investigation is underway.



Detailed, accurate records of animal conditions and property circumstances are essential at the assessment stage.



### RELATED APPENDIX ITEMS

#### APPENDIX 5

[Animal ID Numbering System](#)

#### APPENDIX 7

[Animal Evidence Tracking Form](#)

#### APPENDIX 15

[Resource Assessment Tool](#)

#### APPENDIX 16

[Initial Case Assessment](#)

#### APPENDIX 17

[Legal and Cost of Care Partner Support](#)

# Transport of Impounded Animals

Transporting animals from their typical surroundings to a separate sheltering location can be logistically challenging, costly, and has the potential to increase stress levels in animals. It is imperative that care is taken in carefully planning for and implementing transports. Depending on the species of animals (livestock vs pet animals), their location in Colorado (some local ordinances may apply), and the nature of the property in which they are currently housed (facility licensed by PACFA or FDA), there may be existing requirements that dictate the conditions of transport.

When multiple agencies and sheltering partners are involved in transportation and receiving of animals, communication and advanced planning are key in ensuring all partners onsite are operating on the same plan. Animal tracking is also vital to ensuring animal safety, evidence preservation, and animal disposition determination.

## ANIMAL TRANSPORTATION PROTOCOLS

The following protocols meet PACFA animal transportation requirements. Reference 8 CCR 1202-15 for PACFA licensure and inspection requirements.

## REGULATORY BODIES GOVERNING TRANSPORT

When removing animals during a cruelty investigation in Colorado, transport is not just a logistical hurdle—it is a legal process involving three distinct regulatory bodies:

- PACFA (for companion animals)
- The Brand Inspection Division (for livestock)
- The State Veterinarian (for health and disease control)

### General Transport Requirements

- Animals transported by a vehicle must be secured within the vehicle by seatbelt harness or an enclosure that is secured to the vehicle. Unconfined transportation in the open bed of a pick-up truck or other open vehicle is prohibited.
- Enclosures used to transport animals must be secured, water-resistant, well-constructed of cleanable material, and designed to protect the health and ensure the safety of the animals.
- Enclosures must have appropriate heating, cooling, and ventilation to ensure the comfort and health of the animals at all times. The requirements of the specific species, age of the animal, and the specific health condition of the animal(s) must be accommodated.
- Enclosures for transport
  - » The openings of such enclosures must be accessible at all times for emergency removal of the animals.
  - » The animals must be afforded protection from the elements.
  - » Animals may not be placed in enclosures over other animals in transit unless the higher enclosure is fitted with a floor of material that prevents waste from entering lower enclosures.

- » Ingress of exhaust from the vehicle's engine must be minimized.
- » Enclosures must be large enough so that each animal has space to turn around, stand, and lie down.
- Animals that are not conditioned to each other may not be transported in the same enclosure.
- Multiple species may not be transported in the same enclosure with the exception of birds.
- Enclosures must be cleaned and sanitized after each use or between animals, or more often if necessary.
- Any vehicle used to transport an animal must be maintained in good repair and kept clean.
- Dogs must be removed from the vehicle at least every 6 hours and allowed to urinate, defecate, and obtain food and exercise. The PACFA licensee must document evidence of the exercise of these dogs. Facilities may submit a written request to the PACFA Commissioner for an exemption from this requirement if the facility has no disciplinary matters pending. Any such submission must demonstrate provisions for the safety and well-being of dogs in the care of the facility if such submission were to be granted.
- Enclosures used to transport cats must have a solid floor and contain a mat, towel, or other soft covering.
- If the trip is 6 hours or more in length, a litter box must be provided within each enclosure for cats. The litter box may not cover more than 50% of the enclosure floor.
- Animals must be kept hydrated.
- When transporting dogs and cats, a dated manifest must be kept to document number, species, and breed of animals being transported.

### Additional Requirements for Livestock

- For cases involving livestock or large numbers of animals, investigators should coordinate with Colorado Event Centers or County Fairgrounds, ensuring facilities meet the specific needs of the species involved.
- If animals must move out of state, investigators must comply with Colorado Department of Agriculture (CDA) health certificates and brand inspection requirements (for livestock).
- Brand Inspection Requirements (Livestock)
  - » In Colorado, "Livestock" (cattle, horses, mules, and donkeys) are treated as mobile property. Under C.R.S. § 35-53-105, a Brand Inspection is required regardless of whether the animal is actually branded.
  - » The 75-Mile Rule: A brand inspection is mandatory if livestock is transported more than 75 miles within Colorado.
  - » State Lines: An inspection is mandatory any time livestock crosses the Colorado state line, regardless of the distance.
  - » Ownership Verification: The Brand Inspector's role is to verify legal authority. In cruelty seizures, the investigator must provide the court order or seizure papers to the inspector to obtain a Transportation Permit or Clean Bill of Sale.
  - » Notification: It is best practice to notify the local Brand Inspector 2–3 days in advance of a planned seizure to ensure they are available to document the animals as they are loaded.

# Placing and Sheltering Impounded Animals

When determining appropriate shelter placement for impounded animals, several factors will impact these decisions. The primary consideration should always be the welfare of animals being impounded. This includes prioritizing animals' physical and psychological well-being in all decisions and actions, minimizing stress and suffering for animals throughout these processes, and a commitment to providing appropriate care to all animals involved, including medical treatment, nutrition, and enrichment.

## Factors That Guide Placement Decisions

- Species, type, number and size of animal
- Animals' familiarity with each other and ability to co-shelter
- Animals' familiarity with humans related to quality of life and safety
- Likely duration of holding period

## Minimum Standards For Animal Care

For pet animals in Colorado, PACFA regulations set forth minimum standards for the sheltering of animals.

- [PACFA Regulations](#)

## Resources For Basic Sheltering Protocols:

- [ASV Guidelines](#)
- [ASPCAPro Animal Shelter Resources](#)
- [ASPCAPro Shelter Resources related to ASV](#)

## Best Practices For Sheltering, Generally

- [Koret Shelter Medicine Resources](#)

## Long-Term Sheltering Options

Shelters are designed for short-term stays, and lengthy holds can cause behavioral, psychological, and physical decline. Animals sheltered for more than 14 days require increased space, meaningful enrichment, and environmental modifications to support natural behaviors and reduce stress. The need for these additional supports only increases in long-term stays that can last more than a year due to calendaring delays in the underlying legal cases.

## Behavior, Medical, And Staff Considerations For Short And Long-Term Impoundment Periods

**Enrichment and Care:** Create an enrichment and behavior plan for each impounded animal. Provide regular exercise, mental stimulation, and socialization. For dogs, this may involve behavior assessment, training sessions, and, if possible, playgroups with other animals from their case. For cats, this may include clicker training sessions, larger enclosures, increasing access to areas of choice and places to hide when desired, as well as access to natural light, windows and open air enclosures, and other enrichment opportunities.

**Stress Reduction:** Use of calming techniques, reducing noise in long-term holding areas, providing natural light during the day and reducing light at night, limit the flow of other animals through the long-term holding areas where possible. .

**Alternative housing arrangements:** Foster home options, when a sheltering agency is authorized to allow court hold animals to be cared for offsite (provided chain of custody is maintained). Larger enclosures, separate from the public, and away from influx of new animals. Avoid housing long-term stay animals in isolation rooms as repeated exposure to new illness and animals that are in distress can further deteriorate long-term stay animals' condition.

## Tips & Resources

- [Appendix 27: Decision-Making Guidelines for Managing Animals from Large-Scale Operations](#)
- [Appendix 28: A Guide for Transport and Shelter Care](#)
- Refer to Section 1.1 - [Staff training and staffing levels for large impounds](#)
- Contact partners using [Shelter Transport Help Request Form](#)

## Resources for Veterinary Teams

- [Refeeding Basics](#)
- [Animal Conditioning Score](#)
- [Medical Evaluation of Abuse - Neglect Case](#)
- [Dogs: Skin and Hair Triage Form](#)
- [Equine Exam Form](#)

# Using Species-Appropriate Standards

Different species have different needs and tolerances. What constitutes immediate danger for one species may be acceptable for another. Always use species-appropriate standards when making removal decisions.

## Companion Animals (Cats, Dogs)

### Standards to Apply:

- [Association of Shelter Veterinarians \(ASV\) guidelines](#)
- [PACFA Rules](#)
- [Body condition scoring \(BCS 1-9 scale\) Pg. 1 - 4](#)
- [TACC \(Tufts Animal Care and Condition\) scales](#)

### Critical Factors:

- Companion animals are adapted to living with humans and typically require more intervention
- Lack of socialization or extreme fear may indicate neglect
- Indoor animals left outside without adequate shelter

## Equines (Horses, Donkeys, Mules)

### Standards to Apply:

- [Body condition scoring \(BCS 1-9 scale\) Pg. 5 & 6](#)
- Seek guidance from the Bureau of Animal Protection regarding equine standards
- [Veterinary assessment of hoof care and dental care](#)

### Critical Factors:

- Equines with appropriate shelter may be adapted to some level of inclement weather, unlike companion animals
- Transport stress can be significant—consider whether removal causes more harm
- Severe hoof neglect (overgrown, laminitis) may require immediate veterinary intervention but not necessarily removal
- A BCS of 3 or below typically indicates severe malnutrition requiring action

## Livestock (Cattle, Sheep, Goats, Pigs, and Fowl)

### Standards to Apply:

- [Beef Quality Assurance](#)
- [Body Condition Scoring for Livestock \(BCS 1-9 scale\)](#)
- Contact BAP for livestock standards

### Critical Factors:

- Livestock are subjected to and habituated to outdoor conditions
- Consider whether animals can be managed on-site with feed supplementation
- Transport and handling stress can be severe—removal should be carefully considered
- Seasonal body condition variations are a feature of some management systems

## Small Animals (Rats, Rabbits, Guinea Pigs, Birds, Reptiles)

### Standards to Apply:

- [Association of Shelter Veterinarians \(ASV\) guidelines](#)
- [PACFA Rules](#)
- Species-specific care requirements
- Temperature and humidity requirements (critical for reptiles)
- Species-appropriate diet and housing
- Special care for offspring born during impound or in-care (highly species specific)

### Critical Factors:

- Small animals deteriorate quickly—timely intervention is critical
- Species-specific expertise required for proper assessment
- Environmental conditions (temperature, humidity) can be immediately life-threatening

## INVESTIGATIONS AND RESPONSE GUIDELINES



### APPENDIX ITEMS

#### APPENDIX 5

[Animal ID Numbering System](#)

#### APPENDIX 7

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#### APPENDIX 15

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[Legal and Cost of Care Partner Support](#)

# SECTION 5

## COST OF CARE AND FINANCIAL MANAGEMENT

### 5.1

[Understanding Cost of Care in Large-Scale Impounds](#)

### 5.2

[Documenting and Presenting Costs for Court Review](#)

### 5.3

[Standardizing Cost Calculations](#)

### 5.4

[Common Cost of Care Issues & Their Solutions](#)

### 5.5

[Cost Recovery and Reimbursement](#)

### 5.6

[Best Practices for Cost of Care Management](#)

### 5.7

[Coordination and Ethics in Asking for Community Support for Extraordinary Cases](#)

# Understanding Cost of Care in Large-Scale Impounds

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Cost of care provisions in Colorado law exist to ensure that animals receive necessary care while legal proceedings are underway, without placing an undue financial burden on taxpayers or the agencies providing that care. These provisions also help expedite case resolution by requiring owners to demonstrate their commitment to reclaiming their animals and providing legally required care through regular payments, or their plan to voluntarily surrender animals if they cannot afford to pay for or provide legally required care.

[Section 3.4](#) covers the legal authority and owner liability framework. This section addresses how to put that framework into practice.

In large-scale impound cases, the financial impact can be substantial. Caring for dozens or hundreds of animals for months — or more than a year — requires significant resources including shelter space, staff time, veterinary care, food, and supplies. Clear, reasonable, and consistent cost of care calculations are essential for protecting both animal welfare and agency sustainability. It ensures financial transparency, supports reimbursement efforts, and informs future planning for all agencies involved. It is critical to begin tracking expenditures from the outset. When multiple agencies are involved, consistent and detailed cost tracking also facilitates equitable cost-sharing and reimbursement.

## OVERVIEW: COST OF CARE HEARINGS

In Colorado, an owner or custodian is liable for the costs associated with an animal's:

- Care
- Keeping
- Transport
- Disposition of the animal if the court orders forfeiture

Cost of animal care laws have been implemented to help defray the oftentimes substantial costs incurred by agencies caring for seized animals, reduce the time seized animals remain in legal limbo unable to be placed in new adoptive homes and also ensure that owners have a full and fair opportunity to be heard by a court.

While in custody, animals must be provided with:

- Housing
- Food
- Veterinary services

Owners may inquire why they are required to pay the costs of care before being found guilty of the alleged crime(s). It is important to note that these are not new or additional costs to the owner, the care costs reflect the same basic level of care required of pet owners under state and local law (e.g., the care that should have been provided had the animals remained in the owner's care).

**Without payment by the owner**, these expenses are generally borne by:

- Local governments
- Private shelters
- State taxpayers

Large-scale or prolonged cases can impose significant financial and logistical demands on shelters, potentially limiting their ability to serve other animals in need.

These resource constraints may also affect the practical enforcement of cruelty and fighting laws, as agencies must consider whether adequate space and funding are available before seizing animals. Because companion animals have evolved to live with humans in home environments, extended shelter stays in kennel environments can, even with high quality care, contribute to stress-related behavioral changes in animals.

For these reasons, clear and strict guidelines for cost of care hearings and procedures are vital to ensuring a fair process for owners that does not negatively impact animals or investigating agencies.

# Understanding Cost of Care in Large-Scale Impounds

## HOW COSTS ARE DETERMINED AND MANAGED

**1 IMPOUNDMENT:** An animal is impounded by an agency due to alleged cruelty or neglect. The owner or owners are notified of the impoundment and the requirement to provide the cost of care, and advised of their rights.

**2 PAYMENT OR HEARING:** Pursuant to state statute (C.R.S. 18-9-202.5), the owner must pay the cost of care (as determined by the agency), or may petition the court for a hearing at which point the court will determine whether there was probable cause for the animal's seizure and impoundment, and if yes, whether the costs of care as set by the agency are reasonable. **The owner must pay the cost of care in 30-day increments in order to prevent disposition of the animal.**

Under Colorado state law, this "cost of care hearing" is intended to be held **swiftly, within 10 days of the impoundment**, to ensure appropriate care for the animals, minimize uncertainty related to care of the impounded animals and limit unnecessary costs to the agencies overseeing animal care.

**Time is of the essence:** Delays in holding these hearings and determining costs can negatively impact outcomes for animals, add to financial burden for agencies caring for animals and cause stress to the law enforcement managing caseloads.

**Other Issues Determined:** At the hearing, the court determines whether there was probable cause to impound the animals, if this has not already been determined. This determination is a key factor in protecting both the constitutional rights of the pet owner, but also providing information to impounding agencies about whether the animals will remain in their care. Determining probable cause is pivotal to safeguarding owner rights and preserving limited law enforcement and animal care resources. This determination should be made as early as possible in the proceedings. If animals were seized pursuant to a search warrant, that is prima facie evidence of sufficient cause for impoundment.

**3 AGENCY ITEMIZES COSTS:** The impound agency provides a detailed, itemized list of costs, including sheltering, care and veterinary services.

**4 COURT REVIEW:** A judge reviews the costs to ensure they are fair, reasonable, and necessary.

**5 ORDER TO PAY:** Under Colorado law, the court orders the owner or custodian to pay these costs and is due at the time of the 10-day hearing. If the owner elects not to pay these costs or no court order to pay is issued, the animals are dispositioned.



# Documenting Costs For Court Proceedings

## WHAT CONSTITUTES REASONABLE COSTS?

Courts evaluate whether cost of care charges are reasonable based on several factors:

- Actual costs incurred: Documentation of real expenses for food, housing, medical care, and staffing
- Consistency with standard practices: Costs that align with the agency's typical impound or boarding fees
- Necessity of services: Whether the level of care provided was appropriate for the animals' condition
- Comparability: How the costs compare to similar services in the region

## COMPONENTS OF COST OF CARE

Cost of care calculations should include all reasonable expenses directly related to caring for impounded animals:

### INITIAL INTAKE COSTS (ONE-TIME)

- Initial veterinary examination and triage
- Intake vaccinations (rabies, DHPP/FVRCP as appropriate)
- Deworming and parasite treatment
- Microchipping or identification
- Initial grooming or sanitation (if needed for health/safety)
- Diagnostic testing (fecal exams, bloodwork if medically necessary)
- Documentation and photography
- Administrative processing

### DAILY BOARDING COSTS (ONGOING)

- Housing/kennel space
- Daily feeding appropriate to species and condition
- Basic cleaning and sanitation
- Daily welfare checks and monitoring
- Enrichment and exercise
- Staff time allocated to animal care

### MEDICAL CARE COSTS (AS NEEDED)

- Treatment of injuries or illness identified at intake or during holding
- Medications
- Follow-up veterinary visits
- Emergency care
- Spay/neuter surgery if required before adoption
- Behavioral assessment and support

### OTHER ALLOWABLE COSTS

- Transportation to/from veterinary appointments
- Specialized diets for animals with medical needs
- Quarantine or isolation housing for contagious animals
- Personnel costs related specifically to the impound, such as overtime or temporary staffing that would not have occurred under normal circumstances

Accurate, detailed documentation is essential for demonstrating that costs are reasonable and defensible.

## REQUIRED DOCUMENTATION FOR COURT PROCEEDINGS

### FOR EACH ANIMAL:

- Unique identification number and description
- Intake date and condition documentation
- Initial exam findings and treatment recommendations
- Daily care logs (feeding, cleaning, exercise, observations)
- Medical treatment records with dates, procedures, and costs
- Any behavioral notes or special handling requirements
- Photographs documenting condition at intake and throughout holding

### AGGREGATE COST RECORDS:

- Itemized invoice showing intake fees, daily boarding, medical costs
- Receipts for supplies purchased specifically for the impound
- Staff time logs (if billing for additional staffing costs)
- Veterinary invoices and treatment summaries
- Transportation costs with mileage or vendor invoices

## COST TRACKING TOOLS

Agencies should implement systems to capture costs in real-time:

- Shelter management software: Use existing software to create a case-specific cost center
- Spreadsheets: Maintain daily cost logs with date, animal ID, service provided, and cost



» See [Appendix 13: Cost of Care Form](#)

- Photo documentation: Time-stamped photos showing condition changes and care provided
- Veterinary records: Ensure all medical services are documented with a clear connection to each animal



## Presenting Costs at Hearings

### WHEN PRESENTING COST-OF-CARE EVIDENCE TO THE COURT, AGENCIES SHOULD:

1. Provide a clear, itemized summary showing intake costs, daily boarding rates, medical expenses, and any extraordinary costs for each animal or group of animals
2. Explain the basis for rates charged: Note standardized agency fees, comparable rates from other facilities, or actual documented costs as appropriate
3. Demonstrate reasonableness: Show that costs are consistent with state statutory/local ordinance requirements and community standards, and are directly related to animal welfare
4. Document and explain extraordinary costs: If costs exceed standard boarding rates due to medical needs, behavioral issues, or specialized care, provide supporting documentation
5. Prepare and present expert testimony regarding cost calculations, extraordinary costs or best practices in animal impound cases.
6. Present organized records: Courts appreciate clear, professional financial documentation that is easy to understand and verify

#### SAMPLE COST OF CARE PRESENTATION STRUCTURE

##### Overview:

- Total number of animals impounded: 47 dogs
- Impound date: February 24, 2025
- Cost of care period: February 24 - March 26, 2025 (30 days)

##### Cost Summary:

- Total intake costs (all animals): \$7,050 (\$150/animal average)
- Total daily boarding (47 animals × \$20/day × 30 days): \$28,200
- Medical treatment costs: \$3,400
- Total 30-day cost of care: \$38,650

##### Supporting Documentation Provided:

- Individual animal intake forms with examination findings
- Daily care logs for each animal
- Veterinary invoices for medical treatment
- Photographs documenting animal condition at intake
- Facility's standard boarding rate schedule

# Standardizing Cost Calculations Across Case Types

## FOR AGENCIES THAT REGULARLY USE STATE STATUTES FOR ANIMAL CRUELTY CASES

Agencies that routinely handle animal cruelty impounds under state law should follow their established procedures for determining cost of care, adding any “above and beyond” expenses specific to the case.

### STANDARD APPROACH:

1. Use the agency’s established daily boarding rate for impounded animals
2. Add documented intake costs (exam, vaccines, initial treatment)
3. Add any extraordinary expenses such as:
4. Specialized veterinary care beyond routine treatment
5. Emergency medical procedures
6. Unusual transportation costs (long-distance transport, specialized vehicles)
7. Extended stays requiring behavioral rehabilitation
8. Quarantine costs for disease management

### EXAMPLE CALCULATION:

- Intake fee: \$150 (exam, vaccines, processing)
- Daily boarding: \$25/day
- 60-day hold period: \$1,500
- Medical treatment for skin infection: \$200
- Total cost of care: \$1,850

## FOR AGENCIES THAT HOUSE STRAYS BUT NOT TYPICALLY STATE IMPOUNDS

Agencies that normally house stray animals but do not regularly handle state-level cruelty impounds should review their standard impound and boarding fees for strays as a baseline.

### STANDARD APPROACH:

1. Calculate standard impound fee (what the agency charges for stray intake and holding)
2. Calculate daily boarding/housing rate
3. Add documented “above and beyond” costs specific to this impound:
  - Enhanced veterinary care
  - Specialized handling or behavioral support
  - Additional staffing needs
  - Extraordinary transportation

### EXAMPLE CALCULATION:

- Stray impound fee: \$100
- Daily boarding: \$20/day
- 45-day hold: \$900
- Behavioral assessment: \$75
- Total cost of care: \$1,075

## FOR AGENCIES THAT DO NOT TYPICALLY HOUSE IMPOUNDED OR STRAY ANIMALS

For organizations that do not routinely provide animal sheltering but are assisting with a large-scale impound, costs should reflect the true expense of providing care.

### STANDARD APPROACH:

1. Calculate actual intake costs:
  - Staff time for intake processing
  - Initial veterinary exam
  - Vaccines and preventive care
  - Housing setup
2. Calculate daily care costs:
  - Average daily cost per animal (food, supplies, cleaning, staff time)
3. Add medical and other documented expenses

### EXAMPLE CALCULATION:

- Intake processing (2 hours staff time @ \$30/hr): \$60
- Initial vet exam and vaccines: \$125
- Daily care cost: \$18/day
- 30-day hold: \$540
- Medical treatment: \$150
- Total cost of care: \$875

# Standardizing Cost Calculations Across Case Types

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## MINIMUM DAILY BOARDING FEE FOR LARGE-SCALE SHARED IMPOUNDS

To ensure consistency and fairness across agencies participating in large-scale, multi-agency impound responses, a minimum daily boarding fee of \$15 per animal per day is recommended for companion animals (dogs and cats). This baseline helps prevent wide disparities in cost recovery among participating agencies and acknowledges the real cost of providing care.

### Rationale for Minimum Fee:

- Covers basic daily expenses (food, bedding, cleaning supplies)
- Accounts for staff time for feeding, cleaning, and monitoring
- Provides partial cost recovery for facility overhead (utilities, maintenance)
- Recognizes that economies of scale are limited in large-scale impounds due to increased disease risk, behavioral challenges, and resource strain

### Species-Specific Considerations:

- Dogs and Cats: Minimum \$15/day
- Small Animals (rabbits, guinea pigs, birds): \$10-15/day depending on species and care requirements
- Livestock (horses, cattle, pigs, goats, sheep): Costs vary significantly by species and local market rates; consult with local boarding facilities and stockyards to establish reasonable rates (typically \$8-25/day for large livestock)

## IMPORTANT NOTE ON COST STANDARDIZATION

The per-animal cost of care should remain consistent regardless of whether the case involves 10 animals or 100 animals.

### What changes in large-scale cases is:

- Total costs (more animals = higher total costs)
- Coordination complexity requiring [Incident Action Plans](#), multi-agency response, etc.
- Additional, sometimes differently trained, staff
- Infrastructure strain (potentially requiring off-site sheltering, transportation, temporary facilities, etc.)

The daily cost to feed, house, and care for each individual animal remains relatively constant whether that animal is part of a small case or a large case.

# Common Cost of Care Issues & Their Solutions

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## SCENARIO / Owner Claims Costs Are Excessive

### RESOLUTION:

- Provide comparisons to boarding rates at local kennels or veterinary facilities
- Show that costs are consistent with the agency's standard fees
- Demonstrate that services provided were necessary for animal welfare
- Offer itemized breakdown so owner can see exactly what they're paying for

## SCENARIO / Owner Cannot Afford to Pay

### RESOLUTION:

- Clearly explain that the law requires payment to prevent disposition
- Discuss voluntary surrender as an option to relieve financial burden
- Explain that failure to pay will result in the agency proceeding with animal placement
- Refer owner to legal aid if they wish to contest the costs in court and are unable to retain an attorney

## SCENARIO / Court Delays Hearing, Creating Extended Holding Period

### RESOLUTION:

- Work with prosecutors to emphasize the importance of timely hearings per statute
- Document the increasing costs and animal welfare deterioration due to extended shelter stays
- Request interim cost orders if the hearing must be postponed
- File motions to compel compliance with statutory timelines

## SCENARIO / Multiple Agencies Involved, Different Cost Structures

### RESOLUTION:

- Establish cost-sharing agreements before impound when possible ([see Appendix 14: Sample MOU](#))
- Use consistent [minimum daily rates across](#) agencies (recommended \$15/day minimum)
- Clearly document which animals went to which facility and for how long
- Coordinate with lead agency to present unified cost documentation to court

# Cost Recovery and Reimbursement

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## WHEN OWNER PAYS COURT-ORDERED COSTS

### Payments should be:

- Deposited into a restricted account pending case resolution
- Tracked carefully with receipts provided to the court
- After case resolution funds are distributed to participating agencies according to documented costs incurred

## WHEN ANIMALS ARE FORFEITED WITHOUT PAYMENT

### If the owner does not pay and animals are forfeited:

- Agencies typically absorb the unreimbursed costs
- Some jurisdictions allow cost recovery as part of criminal restitution
- In civil cases, agencies may obtain judgments but without the force of criminal restitution (wage garnishments etc.) it can be challenging to enforce the judgment.

## REIMBURSEMENT AMONG PARTNER AGENCIES

### When multiple agencies share impound responsibilities:

- Lead agency typically coordinates cost documentation and court filings
- Partner agencies submit itemized invoices to lead agency
- Payment distribution occurs based on documented costs after owner payment is received
- [Memorandums of Agreement should specify cost-sharing arrangements](#) in advance

## Best Practices For Cost of Care Management

1

### **START DOCUMENTING COSTS IMMEDIATELY**

Begin cost tracking on day one of the impound

2

### **USE STANDARDIZED FORMS:**

Consistent documentation makes court presentation easier (see links on next page)

3

### **PHOTOGRAPH EVERYTHING:**

Visual evidence supports claims about animal condition and care needs

4

### **LIMIT COSTS TO THOSE ACTUALLY INCURRED,**

not future or anticipated costs. Only charge for costs actually incurred and services actually provided

5

### **COMMUNICATE CLEARLY WITH OWNERS:**

Explain the process, the legal requirements, and their options. Maintain communications as the case progresses and do not assume that prosecutors or others are making owners aware of additional costs or changes in case.

6

### **COORDINATE WITH PROSECUTORS EARLY:**

Ensure legal team understands cost documentation needs and hearing timelines and is aware of experts that can testify regarding cost determination

7

### **TRACK COSTS BY ANIMAL:**

Individual records provide more detailed and actionable information than aggregate estimates

8

### **UPDATE COSTS REGULARLY:**

Provide updated cost calculations every 30 days as required, communicate these to the court, the prosecutor, and the owner

9

### **MAINTAIN PROFESSIONAL RECORD:**

Organized, clear documentation reflects well on the agency

10

### **SEEK COURT ORDERS PROMPTLY,**

don't delay in filing for cost of care hearings—time is of the essence

11

### **ENSURE TIMELY DISPOSITION AND NOTICE TO PARTIES WHEN OWNER FAILS TO PAY**

# Coordination and Ethics in Asking for Community Support for Extraordinary Cases

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## KEY CONSIDERATIONS FOR EFFECTIVE MULTI-AGENCY FUNDRAISING INCLUDE

### Case Details and Messaging

Establish clear guidelines for what information about the case can and cannot be shared publicly. This includes respecting legal restrictions, protecting the integrity of investigations, and avoiding premature or inaccurate statements. Consistency in messaging across organizations prevents confusion and builds public trust.

### Transparency of Roles

Clearly communicate which organizations are responding, the roles they are playing, and how they are contributing to animal care, logistics, or other areas of response. This level of clarity helps donors understand the breadth of collaboration and how their contributions make a difference.

### Acknowledgment and Visibility

Ensure that all organizations providing support receive recognition for their efforts. Acknowledgment can take the form of co-branding in appeals, joint press releases, and shared donor communications. This fosters goodwill among partners and demonstrates a united front to the public.

### Timing of Appeals

Develop an agreement among organizations on when fundraising efforts will begin and how campaigns will be coordinated. Early, uncoordinated appeals can create donor fatigue, competition for resources, or conflicting information. A collective decision on timing ensures that efforts reinforce one another.

### Mechanisms for Donor Stewardship

Donors should receive timely updates about animal care and outcomes, reinforcing accountability and transparency. All public updates should be coordinated between agencies if there is a legal aspect.

### Unified Fundraising Narrative

Align on a shared story that emphasizes collaboration, the scale of the need, and the positive impact of donor support. A consistent narrative ensures that while individual organizations may conduct their own campaigns, the overarching message remains cohesive and donor-centered.

### Equitable Resource Distribution

Consider agreements in advance if funds are raised collectively, and then how these will be distributed or designated. This prevents conflict, ensures fairness, and helps align fundraising with the actual needs on the ground.

### Avoid Vilifying Language

Do not vilify defendants or use inflammatory language in fundraising appeals. While dramatic stories may seem compelling for fundraising, they can jeopardize legal proceedings, deter people from seeking help before situations become severe, and damage the agency's credibility as a professional organization.

### Center Messaging Around Animal Needs & Systems Thinking

Focus fundraising messages on the animals' needs, recovery progress, and the community resources required to provide excellent care. Frame cases using systems thinking that emphasizes prevention, education, and accessible resources rather than individual blame. Ethical fundraising builds long-term donor relationships based on the agency's professionalism and effectiveness, not sensationalized narratives.

# Coordination and Ethics in Asking for Community Support for Extraordinary Cases

## MULTI-AGENCY FUNDRAISING PROTOCOL - CHECKLIST

**PURPOSE:** These practices are in service of collaboration, transparency, and shared support between all organizations involved. A coordinated fundraising approach strengthens public trust, ensures sustainability of resources, and demonstrates that the animal welfare community is united in providing the highest level of care to animals in crisis.

### 1. Pre-Response Preparation (If Possible)

- ☐ Establish a standing fundraising agreement (MOA/MOU) with partner organizations.
- ☐ Identify approved fundraising leads/spokespeople for each agency.
- ☐ Create template joint statements and fundraising appeal language.

### 2. Immediate Response (First 24–48 Hours)

- ☐ Confirm legal/communication restrictions on case details with law enforcement and prosecutors.
- ☐ Identify the lead communications team and establish unified talking points.
- ☐ Align on timing for the first public fundraising appeal.
- ☐ Confirm which organizations are on the ground and their roles.
- ☐ Draft and approve a joint fundraising narrative emphasizing collaboration and animal care if appropriate.

### 3. Launching Appeal for Community Support

- ☐ Release coordinated fundraising appeal(s) with agreed timing.
- ☐ Ensure all organizational logos and names are represented where appropriate.
- ☐ Provide donors with clear instructions on how to give.
- ☐ Coordinate social media posts, press releases, and email blasts to avoid conflicting messages.
- ☐ Track donor response and share updates across organizations.

### 4. Donor Stewardship and Accountability

- ☐ Provide regular public updates on animal care and case progress, as permitted.
- ☐ Ensure transparency in how funds are being used.
- ☐ Share impact stories collectively (before/after care, successful placements).
- ☐ Thank donors promptly and visibly, highlighting collaboration.
- ☐ Document lessons learned for future impound responses.



## RELATED APPENDIX ITEMS

### APPENDIX 24

Common Messaging Themes & Sample Responses

### APPENDIX 25

Fundraising MOU Template

### APPENDIX 26

Case Messaging Templates



# SECTION 6

## COMMUNICATIONS

### 6.1

[Internal, Interagency, and External Communications](#)

### 6.2

[Legal Considerations for Information Sharing](#)

### 6.3

[Purpose of Counter Messaging](#)

### 6.4

[Public Messaging and Case Profile Lessons](#)

### 6.5

[Guidelines for Discussing Large-Scale Impound Cases in Public](#)

### 6.6

[Decision-Making Flow for Communicators](#)

### 6.7

[Communications Templates and Tools](#)

# Internal, Interagency, and External Communications

## MEDIA RELATIONS AND CRISIS COMMUNICATIONS

When managing complex, large-scale impound cases, developing a standard media relations strategy in advance will help streamline communications and avoid inadvertent disclosure of confidential or protected information, while informing the public about case developments. When multiple agencies are involved, crafting press releases that reflect consistent messaging across jurisdictions and agencies, and meet legal requirements, especially in sensitive cases, is essential.

Agencies should not rely on the ability to draft communications or press releases while cases are underway, and should invest time in drafting templates for common scenarios, in order to allow them to quickly and efficiently respond or communicate key messages about cases.

## DEFINING LEAD COMMUNICATORS IN MULTI-AGENCY CASES

In multi-agency situations, the designation of a lead communicator is critical to ensuring consistency, clarity, and efficiency. The process may vary depending on legal authority, resources, and communication capacity.

### KEY ELEMENTS:

- Establish lead communicator early in the process.
  - » Use a decision tree to determine lead based on case type (civil/criminal), legal authority, communication expertise, and available resources. Who is the immediate responding agency or organization? If they have the capacity to be the lead communicator, they will take on that role. If they are unable to hold this responsibility, they will designate another organization to lead communications.
  - » Have a distribution list of all communications professionals from each organization in the related case. Keep this current and updated.
- Be aware that challenges include unclear hand-offs, communication silos, and delays in information sharing.
- The lead communicator will track lead assignments, delegations, and escalation paths.

## RESPONSE EXPECTATIONS OF LEAD COMMUNICATION AGENCY

The lead communication agency is responsible for establishing a messaging strategy, maintaining transparency (within legal constraints), and ensuring timely internal/inter-agency and public updates.

### RESPONSIBILITIES:

- Coordinate messaging with involved organizations and legal teams.
- Host regular status update calls (e.g., daily or weekly).
- Manage escalation protocols and designate spokespersons for legal, animal care, and adoption issues.
- Share approved messaging timelines and templates with all parties involved.
- Maintain objectivity and avoid judgmental language.

## GUIDELINES FOR PUBLIC AND INTERNAL STATEMENTS, TRANSPARENCY, AND CONFIDENTIALITY

Clear guidelines are needed to strike a balance between transparency and legal restrictions, both internally and externally.

### GUIDELINES:

1. The lead agency will define what information can be shared publicly and when.
2. Clarify who within each agency is authorized to speak internally and externally.
3. Document and share internal updates
4. Avoid speculation or premature judgments in statements.
5. Ensure legal teams/animal law enforcement/PACFA/BAP vet public messages when cases are active. In cases where criminal charges are likely to result, be cautious about statements to the public/media. Prosecutors have an ethical obligation to “exercise reasonable care” to prevent investigators, law enforcement personnel, employees or other persons assisting or associated with the prosecutor in a criminal case from making an extrajudicial statement to the public that has a substantial likelihood of heightening public condemnation of the accused.
6. Use pre-defined communication phases aligned with legal milestones.

### APPROVED LANGUAGE

Use of standardized and objective language ensures consistency and professionalism across agencies.

#### Components:

- Shared glossary of terms.
- Objective descriptors for case details (avoid emotionally charged language).
- Language vetted by legal expertise where applicable.
- Use clear, concise, and respectful language, particularly regarding animals, defendants, and legal processes.

## SAMPLES/TEMPLATES GUIDELINES

Streamline communication across organizations ([Included in Appendix 26](#)):

- Case announcement guidelines
- Internal update memo.
- Public FAQ examples.
- Stakeholder outreach letter.
- After-action report outline.

# Internal, Interagency, and External Communications

## INTERNAL COORDINATION

Consult the agency's communications team, and legal counsel when needed, before issuing any public statements.

### COORDINATE MESSAGING WITH

- Partner agencies (e.g., animal control, veterinary services)
- Communications/public information officers (PIOs)
- Law enforcement leadership

Maintain pre-approved boilerplate language for rapid response.

#### Examples of pre-drafted templates:

- Initial case launch/impound release
- Legal action underway
- Animal care and recovery updates
- Partner acknowledgments
- Resolution and outcome communications
- Guidelines for co-branding with multiple agencies and for co-fundraising efforts

## SOCIAL MEDIA MANAGEMENT BEST PRACTICES

Social media requires responsive, coordinated, and responsible messaging to manage public perception and engagement.

### BEST PRACTICES:

1. Post regular progress updates and success stories.
2. Pre-approve messaging templates and talking points with the lead agency.
3. Address misinformation swiftly with facts. Do not use emotional language or engage in back-and-forth with community members.
4. Use a shared calendar for coordinated posting or provide a heads up to other involved agencies when posts are planned.
5. Identify lead agency responsible for monitoring and responding to comments. If multiple agencies/organizations share their own post from their page, they will be responsible for responding to comments or directing individuals to the lead organization for questions.

## TRADITIONAL MEDIA RESPONSES

Engagement with traditional media (TV, radio, print) must be handled with consistent messaging, legal awareness, and coordination across agencies.

#### Protocol:

1. Designate official spokespeople per topic (legal, care, logistics).
2. Use pre-approved talking points.
3. Maintain a record of all media inquiries and responses.
4. Share a unified press kit when multiple agencies are involved.
5. Conduct post-interview debriefs to document lessons learned.
6. Provide all media content to involved partners for visibility.

#### Optional Add-ons

Include if appropriate:

- General statistics on past cases to show pattern or precedent.
- Educational messaging about animal cruelty laws.
- Ways the public can help responsibly (e.g., donate to shelters, report concerns).



#### APPENDIX 26

#### Case Messaging Samples & Templates

## Legal Considerations for Information Sharing

All personnel involved in active investigations must comply with applicable federal, state, and local laws governing information privacy, confidentiality, and evidence handling.

The release or exchange of information, whether internal or external, must be reviewed against the following legal constraints:

**Privacy and Confidentiality:** No personally identifiable, medical, or sensitive information shall be disclosed without proper legal authorization or consent, except as allowed under specific exemptions (e.g., imminent threat, court order).

**Due Process and Fair Trial:** Public or inter-agency disclosures must not include speculative, prejudicial, or unverified details that could impair legal proceedings or a subject's right to a fair trial.

**Investigative Integrity:** Information that could compromise the integrity of the investigation, including witness identities, leads, or forensic data, shall only be shared with authorized individuals or agencies as defined by inter-agency agreements or legal necessity.

**FOIA and Public Records Requests:** Any response to public or media inquiries must be coordinated through the agency's designated legal or communications officer and must comply with applicable Freedom of Information statutes and exemptions.

**Legal Consultation:** When in doubt, personnel must consult the agency's legal counsel prior to any release or exchange of investigative information.

**BAP Messaging:** BAP cases may take longer for official messages. Communications and fundraising messages should be coordinated with the Department of Agriculture.

## Confidentiality and Non-Disclosure Obligations

1. Law enforcement agencies often have **internal policies or memoranda of understanding (MOUs)** that restrict sharing of sensitive information outside of the investigation team.

*Classified or Sensitive Data: Some information may be legally classified or protected under confidentiality agreements.*

2. **Privacy Laws:** Personally Identifiable Information (PII): Releasing names, addresses, or identifying details without consent may violate privacy laws like the U.S. Privacy Act.

3. **Health Information:** If the case involves health data, HIPAA (Health Insurance Portability and Accountability Act) may restrict disclosures.

4. **Impact on Due Process and Fair Trial:** Prejudicial Publicity: Public statements that could bias a jury pool might violate a suspect's right to a fair trial under the Sixth Amendment (U.S. Constitution).

5. **Defamation Risk:** Incorrect or premature release of information can expose agencies to liability if individuals are falsely implicated.

6. **Freedom of Information Laws** (e.g., CORA at the state level and FOIA at the federal level). These laws generally allow public access to government records, but there are exemptions for:

- Ongoing law enforcement proceedings
- Protection of sources and methods
- National security and public safety concerns

7. **Inter-Agency Agreements and Jurisdictional Constraints:** Agencies must consider whether they are legally allowed to share information with other jurisdictions (e.g., federal vs. state vs. local).

*Note that MOUs or mutual aid agreements usually govern the flow of information between agencies.*

8. **Court Orders and Subpoenas:** Sometimes information can only be shared or must be withheld due to court-imposed gag orders, sealing orders, or pending subpoenas.

9. **Chain of Custody and Evidence Integrity:** Sharing evidence or investigation details outside proper channels could compromise the chain of custody or lead to evidence being inadmissible in court.

10. **Whistleblower Protections:** Individuals disclosing information internally or externally under whistleblower statutes must ensure disclosures are protected and do not violate legal prohibitions on disclosure.

### Best Practices:

- **Legal Review:** Always ensure that information is able to be shared by asking the lead investigator. Involve legal counsel before sharing sensitive information.
- **Redaction Protocols:** Use redaction tools to remove sensitive data before releasing any documents.
- **Training:** Ensure all personnel understand the legal boundaries and protocols for information sharing.



### RELATED APPENDIX ITEMS

#### APPENDIX 21

Protocols for Information Sharing Checklist

#### APPENDIX 22

Closed Investigation Checklist

# Purpose of Counter Messaging

To proactively or reactively respond to public criticism, misinformation, or media coverage regarding an animal seizure, while:

- Upholding legal and ethical standards
- Protecting ongoing legal proceedings
- Ensuring safety and welfare of animals and personnel
- Maintaining public confidence.

## KEY PRINCIPLES

### Fact-Based and Neutral Tone

- Stick to verifiable facts only (e.g., number of animals seized, general conditions, court actions).
- Avoid emotional or inflammatory language, primarily when referring to the individuals involved.
- Do not speculate about charges or future legal outcomes.

### Protect Privacy and Due Process

- Never name suspects or owners unless charges have been filed and publicized by the court.
- Avoid sharing personal details of individuals unless required and legally permitted.
- Avoid comments that could bias future legal proceedings.

### Animal Welfare Emphasis

- Reinforce that the primary concern is animal health, safety, and humane treatment.
- Communicate clearly that seizures are conducted under legal authority and often in coordination with veterinarians and animal care professionals.

### Respond Promptly but Strategically

- Counter false narratives early, but do not amplify misinformation by overreacting.
- Address core misunderstandings, not every single comment or accusation. Agencies should address core misunderstandings rather than every individual comment or accusation, responding thoughtfully and avoiding debate while focusing on correcting misinformation
- Use clear, centralized messaging through designated spokespeople or PIOs.

## TYPES OF MESSAGES TO AVOID

- Speculation about motives, charges, or trial outcomes.
- Public judgment or shaming of individuals involved.
- Gruesome or graphic content, which may trigger backlash or legal scrutiny.
- Engaging in online arguments on unofficial channels.



## RELATED APPENDIX ITEMS

### APPENDIX 24

Common Messaging Themes & Sample Responses

# Public Messaging and Case Profile Lessons

## MANAGING PUBLIC MESSAGING IN SENSITIVE CASES

Communication regarding a large-scale impound has the potential to impact the case if released too early, too many details are provided, or the case has not reached a point where information can legally be released. **It is vital to the case that the lead agency signs off to release information.** The lead agency should ensure that all legal compliance in the case is complete prior to signing off on releasing information.

**In cases where animals are in poor condition and must be euthanized**, animal shelters should prepare compassionate messaging that acknowledges animal suffering, their role in the community to be a safe place for all animals and avoid villainizing the individuals involved.

**In cases that escalate public scrutiny** and commentary, entities involved in the case should prepare counter messaging that acknowledges the difficulties in the case and offers compassion toward the animals involved. In some cases, on social media, posting one response and not responding to each inflammatory comment is a best practice strategy.

### COMMUNICATION FAILURES CAN OCCUR WHEN:

- No proactive communication plan before the case goes public
- Reactive, defensive responses once criticism surfaces
- Closing off public questions rather than acknowledging them
- Donation-first messaging that leads with organizational needs rather than animal welfare updates
- Incomplete inter-agency transparency that allows the story to be told by others first

## CASE PROFILE LESSONS: ALIENATING THOSE TRYING TO HELP

**The situation:** A county animal shelter took in 70 hounds from a hoarding case, posted publicly: “That part is not up for debate or discussion and we will not be taking the time to answer as to why these will not be up for adoption.”

While the intent was to manage an impossible workload, **the blunt dismissal alienated potential rescue partners** and drew criticism at a moment when the shelter desperately needed public goodwill.

Statements that close off public inquiry — even when justified operationally — tend to feel contemptuous to people who are trying to help.

*What to try instead: Offer messaging that continues the story for later—“Animals are not currently up for adoption in order to address their medical and behavioral needs. More information will be available in the coming days!”*

## CASE PROFILE LESSONS: UNADDRESSED FEARS OF MASS EUTHANASIA

**The situation:** In another state, when a shelter went over capacity during a hoarding-related surge, misinformation spread rapidly on social media claiming the county board had ordered mass euthanasia of dogs.

**Because the shelter had not proactively communicated what was actually happening, the false narrative took hold**, leading to a flood of outraged calls to local officials. The lesson here is that a vacuum of official information gets filled — and not charitably.

*What to try instead: Be as transparent as possible without offering too many case details. Offering that “this is an active case, animals are currently being cared for by local sheltering entities and more information will be offered when possible..” can stave off rumors.*



# Public Messaging and Case Profile Lessons

## CASE PROFILE LESSONS: FRAMING THE NARRATIVE AROUND MENTAL HEALTH

**The situation:** [The Minnesota Federated Humane Societies](#) explicitly cautioned that mental health struggles often underlie hoarding, and that “not every case should be charged.”

Public messaging that focuses heavily on condemning the individual — without acknowledging the mental health dimension — tends to generate backlash from community members who know the person, and can complicate prosecution by appearing to prejudice outcomes.

The Animal Humane Society offers [a model for how to frame the hoarder](#) themselves in public communication: “The general public might dismiss hoarding as malicious, villainous, even evil — but hoarding is rarely these things. In both law enforcement and the mental health community, there’s growing recognition that we need to approach hoarding cases with more empathy and less judgment. When we acknowledge hoarding as a psychiatric illness, treatment can be more effective and the pattern is less likely to be repeated.”

### How animal hoarding is straining Minnesota shelters and spotlighting mental health

By CATHY WURZER and GRACIE STOCKTON Minnesota Public Radio News

Apr 19, 2024 Updated May 25, 2025



#### Why this works

*This framing matters for public messaging because communities often know the hoarder — and messaging that demonizes them alienates neighbors, complicates prosecution, and fuels social media backlash from people who knew the person as a “rescuer.”*

# Public Messaging and Case Profile Lessons

## CASE PROFILE LESSONS: ADDRESSING HARD QUESTIONS & RALLYING THE COMMUNITY

**The situation:** When the Cheyenne Animal Shelter took in animals from a large scale impound case, rather than issuing a generic press release, they published a detailed [FAQ post directly addressing the questions already coming in from the public](#).

Their post opened by acknowledging the community's support before addressing hard questions head-on, including explicitly telling the public: "CAS is not responsible for the ongoing investigation of this case, nor the issuance of any citations or pressing of charges. We cannot comment on or provide updates for the case."

They then redirected that frustration productively, encouraging the public to contact elected officials about Wyoming's animal cruelty laws.

**On the question of adoption**, rather than a flat "not available," they gave a forward-looking commitment: "As we continue to work with these animals, we will share updates about their status and, when the time comes, share when they are ready to find new homes." They also directed people to their e-newsletter for ongoing updates.

### Why this works

*This framing works to anticipate public questions rather than reacting to them. Being explicit about what the shelter can't say (legal/investigative matters) and why – rather than just going silent. It also successfully redirects public energy toward advocacy and donations.*



Oct 13

**2025 Hoarding Case Updates**

It's been a busy week at the Cheyenne Animal Shelter—welcoming and caring for over 100 pets from the recent hoarding case while continuing our regular shelter operations. It takes a village to give these pets the compassion and care they deserve, and we are deeply grateful for the outpouring of kindness, support, and donations from our community.

**"How can I adopt or foster one of the pets involved?"**

At this time, these pets are not available for adoption or fostering. As we continue to work with these animals, we will share updates about their status and, when the time comes, share when they are ready to find new homes.

**"What is the best way to stay updated?"**

The absolute best way to stay updated on the animals in our care, any advancements in their progress, and shelter needs is by signing up for our free e-newsletter using the

**"How can I make a monetary donation?"**

Monetary donations can be made by clicking the button below or by visiting the shelter in person at 800 Southwest Dr. Thank you for considering us during this time.

**"What supplies are needed?"**

We are currently in need of extra-large blankets, towels, hay, hot dogs, whipped cream, goat pellets, veggies, dog toys, and elevated bowl stands. We also need all kinds of bird supplies. There are birds ranging in size from very small to medium. We need perches, pellets (we have plenty of seed), interactive toys, cuttle bones and vitamin blocks, cage-mounting baths, and food and water dishes.

**"What is the status of the case and the person involved?"**

CAS is not responsible for the ongoing investigation of this case, nor the issuance of any citations or pressing of charges. We cannot comment on or provide updates for the case. Frustrating as this is, we encourage the public to look into Wyoming's laws governing animal care, cruelty, and neglect, and to speak with their elected officials if they would like to see changes made to help prevent things like this from happening in the future.



# Guidelines for Discussing Large-Scale Impound Cases in Public

## 01 Prioritize Confidentiality

- Do not disclose any identifying information about the case unless explicitly cleared by legal authorities. This includes:
  - » Names or addresses of suspects or witnesses
  - » Exact number or condition of animals involved
  - » Specific location of the seizure
  - » Photos, footage, or internal documentation not officially released
- Refer to the case in general terms only (e.g., “an ongoing investigation involving multiple animals”).

Suggested Phrase: “Because this is an active investigation, we are not able to share specific details at this time.”

## 02 Stay on Message

- Focus on what is known and cleared for release. Emphasize:
  - » The shelter’s role in providing care and support. Make sure to credit all partners that are helping.
  - » The importance of community involvement (donations, fostering, volunteering)
  - » The collaboration among all organizations involved

Suggested Phrase: “Our role is to ensure these animals are safe and cared for while authorities continue their investigation.”

## 03 Avoid Speculation or Opinions

- Do not speculate on the condition of the animals, the intentions of those involved, or legal outcomes.
- Avoid language that implies guilt or assigns blame.

Not Recommended: “It looks like these people were hoarders.” OR: “They’ll probably face criminal charges.”

Recommended Alternative: “We are deferring all legal and investigative questions to the authorities leading the case.” OR: “We recognize that some of our community members try to help animals, and although they have the best intentions, they can get in over their heads. We encourage you to reach out if you need help.

Our organizations are here to help and not judge.”

## 04 Keep Public Communications Consistent

- Use approved press releases or briefings when speaking with the media or the public.
- Refer all media requests to the designated spokesperson or communications team.

Suggested Phrase for Non-Spokespersons: “I’m not authorized to speak on behalf of the shelter regarding this case. I’d be happy to direct you to our communications team.”

## 05 Focus on the Animals and Community Support

- Highlight the immediate needs: medical care, supplies, donations, foster homes to make space in the shelters for newly arriving animals.
- Reinforce the shelter’s mission of compassion, rescue, and rehabilitation.

Suggested Phrase: “While details are limited, what we can say is that these animals are now safe and receiving the care they need. We’re grateful to our community for stepping up.”

## 06 Review Before You Speak

- If you are unsure whether a detail is approved for public discussion, do not share it.
- Always check for updates with your leadership or legal contact before interviews or community engagements.

## 07 Redirect for Legal or Investigative Inquiries

- Instruct media or public inquirers to contact the lead agency.

Suggested Phrase: “For questions about the investigation itself, we ask that you contact [Agency Name] directly, as they are the lead on this case.”

# Decision-Making for Communicators

## Situation: Active Investigation – Animal Seizure Case

01

**Is the case officially confirmed by authorities?**

**YES**

→ Proceed to Step 2

**NO**

→ Do not comment publicly. Prepare internal holding statement only.

02

**Has a press release or media statement been authorized?**

**YES**

→ Use only approved messaging; proceed to Step 3

**NO**

→ Draft talking points and submit for approval. Do not speak publicly until cleared.

03

**Who is requesting information?**

Media:  
Proceed to Step 4

Donors / General Public: Use community messaging (focus on animal care needs, not case details)

Law Enforcement or Agency Partner: Coordinate directly through designated liaison. Do not speak independently

04

**Answering General Questions**

General Questions: Such as “What happened?”: Provide broad, non-identifying information cleared by legal/agency partners.

**EXAMPLE:** “We are assisting in an active animal welfare case and caring for animals who were removed from unsafe conditions. We can’t share further details at this time.”

**Answering Specific Questions**

Specific Questions: Such as “What condition are the animals in?” or “Where did the suspect live?”  
Has this information been explicitly approved for release?

**YES**

→ Share only what’s authorized.

**NO**

→ Politely decline and cite confidentiality.

**EXAMPLE:** “I’m not able to provide those details as the case is still under investigation.”

05

**Is there potential legal risk (defamation, breach of privacy/confidentiality)?**

**YES/UNSURE**

→ Do not release information. Consult legal or agency partners.

**NO**

→ Proceed cautiously with approved messaging only.

06

**Has the message been shared internally with staff and volunteers?**

**YES**

→ Reinforce consistency

**NO**

→ Issue internal memo or talking points. Ensure only authorized personnel respond to inquiries.

### FINAL CHECKLIST

- ▶ Is an approved script or release being utilized?
- ▶ Have the details been confirmed with agency/legal contacts?

- ▶ Is the focus on the animals, not the allegations?
- ▶ Is the case’s integrity and organization’s credibility being protected?

# Communications Templates and Tools

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## **APPENDIX 21**

Protocols For Information Sharing - What Can Be Shared And What Is Confidential

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## **APPENDIX 22**

Closed investigation Checklist - Use this before releasing/disclosing any information related to a closed investigation

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## **APPENDIX 23**

Public FAQ Document: Quickly create FAQ documents for large-scale impounds.

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## **APPENDIX 24**

Common Messaging Themes & Sample Responses

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## **APPENDIX 26**

Case Messaging Samples & Templates

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# SECTION 7

## MONITORING CASE PROGRESS AND AFTER-ACTION

### 7.1

Monitoring Case Progress

### 7.2

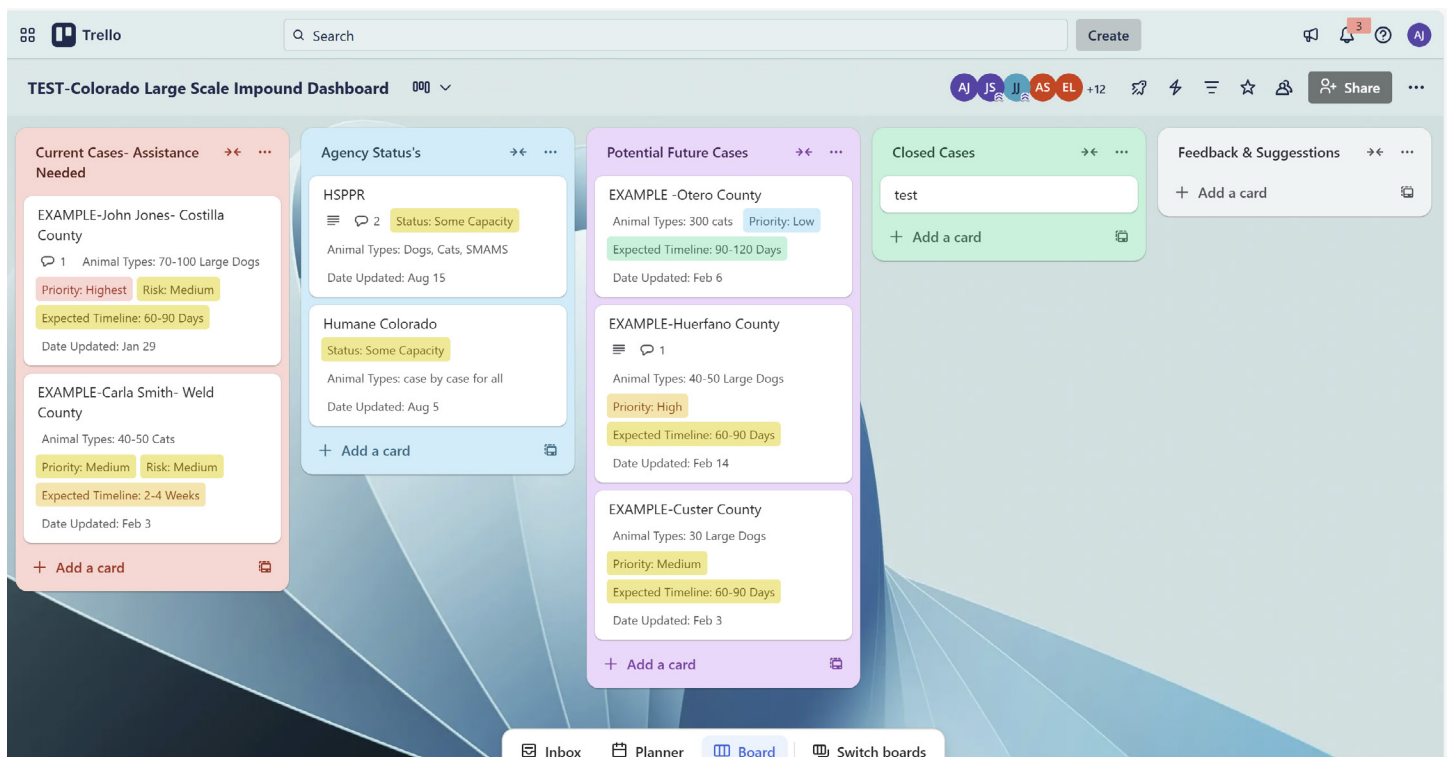
After-Action Evaluation

# Implementing a Project Management Tool for After-Action Coordination

A tool like Trello can be effective for managing and tracking After Action Reports by leveraging its card-based board system to organize each case response as an individual card, moving it through columns that mirror the After Action Reports lifecycle – such as “Current Cases - Assistance Needed,” “Agency Status,” and “Closed Cases.”

Within each card, teams can attach the completed After Action Reports document, assign responsible team members, set due dates for follow-up actions, and use checklists to track the status of improvement recommendations.

Labels can be applied to categorize reports by case type, priority level, or department, making it easy to filter and identify trends across multiple incidents.



## After-Action Evaluation Outline

**PURPOSE:** A framework for documenting lessons learned, outcomes, and opportunities for improvement following a case response.

1

**EXECUTIVE SUMMARY**

Case overview

Date range of activities (for example, from the first animal coming into care to the last animal leaving)

Agencies/organizations involved

Timeline of key events (include first responding agency)

2

**RESPONSE SUMMARY**

Actions taken and by whom

Resources deployed

Coordination and communication channels used

Decision points and rationale

3

**OUTCOME**

Final status/disposition of the case

## After-Action Evaluation Outline

**PURPOSE:** A framework for documenting lessons learned, outcomes, and opportunities for improvement following a case response.

4

LESSONS LEARNED

What worked well (sustain)

What did not work as intended (improve)

Unexpected challenges encountered

Notable gaps in process, resources, or communication

5

OPPORTUNITIES FOR IMPROVEMENT

Specific recommended changes (process, response plans, training, tools, policy)

Suggested owner/responsible party

Target implementation timeline

6

FOLLOW-UP ACTIONS

Assigned action items, pending decisions, or outstanding reviews

**PURPOSE:** A framework for documenting lessons learned, outcomes, and opportunities for improvement following a case response.

## ADDITIONAL NOTES ON CASE

[illegible]



# GLOSSARY

### **ANIMAL CONTROL OFFICER (ACO)**

A local government employee authorized to enforce animal control ordinances, issue citations, and seize animals. Their exact powers vary by local ordinance and state statute. ACOs are often the first responders to animal welfare complaints.

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### **AFTER-ACTION REPORT**

A structured review document completed after a case response to capture lessons learned, evaluate outcomes, and identify opportunities for improvement. Used to improve future responses.

---

### **ANIMAL WELFARE ACT (AWA)**

A federal law regulating certain aspects of animal care and use, particularly for research facilities, exhibitors, and dealers. Violations may trigger USDA/APHIS investigations.

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### **ASV GUIDELINES**

Standards published by the Association of Shelter Veterinarians establishing minimum care requirements for animals in shelters. Used as a benchmark for evaluating shelter conditions.

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### **BUREAU OF ANIMAL PROTECTION (BAP)**

The Colorado Department of Agriculture's investigative and enforcement arm for the Animal Protection Act. BAP agents are commissioned after meeting minimum training standards and specialize in cruelty/neglect enforcement, particularly for livestock and equine cases

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### **BODY CONDITION SCORE (BCS)**

A standardized numerical scale used to assess an animal's nutritional status and overall body condition overall body condition. Scales vary by species (e.g., 1–9 for dogs, cats, horses). A score of 3 or below for equines typically indicates severe malnutrition requiring action.

---

### **BRAND INSPECTION**

A Colorado requirement to verify livestock ownership before transport or sale. Required for livestock moved more than 75 miles within the state or across state lines, regardless of whether animals are branded. In cruelty seizures, investigators must provide court orders or seizure papers to obtain transport permits.

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### **CASE INITIATION**

The process of formally opening an investigation following receipt of a valid complaint. Includes determining jurisdiction, establishing probable cause, and assessing resources before any animal removal occurs.

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### **CDA (COLORADO DEPARTMENT OF AGRICULTURE)**

The state agency overseeing multiple animal welfare programs in Colorado, including BAP, PACFA, the State Veterinarian, and Brand Inspection. The CDA has regulatory and inspection authority but must coordinate with law enforcement for criminal prosecution.

---

### **CHAIN OF CUSTODY**

The documented record tracking the handling, transfer, and location of animals and evidence from the point of seizure through legal proceedings. Maintaining an unbroken chain of custody is critical for evidence admissibility in court.

---

### **COMPANION ANIMAL**

A domesticated animal kept for companionship, including dogs, cats, and small animals such as rabbits and guinea pigs. Distinct from livestock in legal standards, care requirements, and sheltering protocols. Companion animals are typically adapted to living with humans and require more intervention in neglect situations.

---

### **CORRECTIVE ACTION PLAN**

A formal agreement requiring an animal owner to remedy identified deficiencies in care within a specified timeframe, used as an alternative to removal when animals are not in immediate danger and the owner is cooperative.

---

### **COST OF CARE**

The reasonable daily and cumulative expenses incurred by an impounding agency to shelter, feed, and provide veterinary care for seized animals. Under C.R.S. § 18-9-202.5, owners are liable for these costs. Includes initial intake fees, daily boarding, medical treatment, transport, and specialized care.

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### **COST OF CARE HEARING**

A court proceeding held within 10 days of impoundment under Colorado law to determine whether probable cause existed for seizure and whether the impounding agency's costs are reasonable. Owners must pay costs in 30-day increments or risk disposition of their animals.

---

### **CRUELTY (INTENTIONAL HARM)**

Intentional actions causing unnecessary pain, suffering, or death to an animal. Examples include beating, dog fighting, torture, deliberate withholding of food or water, and intentional poisoning. Cruelty typically carries more severe legal penalties than neglect and usually requires immediate removal.

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### **DISPOSITION**

The final outcome for an impounded animal following resolution of legal proceedings. Options include adoption into a new home, transfer to a rescue organization, return to owner, or humane euthanasia as appropriate.

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### **FORFEITURE**

The legal process by which an owner surrenders or is stripped of ownership rights to animals through court proceedings. Animals cannot be placed in permanent homes until legally forfeited, a process that may take months or years.

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### **FOSTER PLACEMENT**

Temporary off-site care of an impounded animal in a private home, authorized by the sheltering agency. Foster placement may be restricted while legal ownership is unresolved. When permitted, chain of custody must be maintained.

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### **ICS (INCIDENT COMMAND SYSTEM)**

A standardized organizational framework for managing emergency and large-scale operations. Recommended for large-scale animal impounds to clarify roles, manage resources, and ensure coordinated response across multiple agencies. Includes

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### **IMPOUND / IMPOUNDMENT**

The lawful seizure and placement of animals into protective custody by an authorized agency. Impoundment is one possible outcome of an investigation—not its default conclusion—and should only occur when probable cause, necessity, and resource capacity all support it.

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### **INCIDENT ACTION PLAN (IAP)**

A written plan outlining the objectives, strategies, and resource assignments for a specific operational period during a large-scale impound. Developed using ICS tools such as the ICS 201 form.

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### **LARGE-SCALE IMPOUND**

An animal seizure involving a significant number of animals (typically 20 or more) that exceeds routine shelter capacity and requires multi-agency coordination, specialized resources, and sustained operational planning.

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### **LEAD AGENCY**

The organization with primary legal authority and coordination responsibility for a case. In multi-agency responses, the lead agency makes final decisions on animal disposition, communications, and legal filings.

---

### **MEMORANDUM OF AGREEMENT (MOA)**

A formal written document establishing roles, responsibilities, and expectations between two or more agencies or organizations in a multi-agency response. MOAs should be established before cases begin and clearly define decision-making authority, cost-sharing, and communication protocols.

---

### **MEMORANDUM OF UNDERSTANDING (MOU)**

A formal document used between agencies to define terms of cooperation, including cost-sharing arrangements, sheltering responsibilities, and information sharing protocols. Distinct from an MOA in that it typically outlines shared intent rather than binding obligations.

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### **MUTUAL AID AGREEMENT**

A pre-established agreement between agencies to share resources, personnel, and capacity during large-scale events. Encourages resource sharing and prevents burnout and financial strain on individual organizations.

---

### **NEGLECT (FAILURE TO PROVIDE)**

Failure to provide adequate care for an animal, often resulting from ignorance, inability, or overwhelming circumstances. Examples include inadequate food or water, lack of shelter, untreated medical conditions, hoarding, and severe overcrowding. May allow for corrective action plans in some cases; differs from cruelty in intent.

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### **PET ANIMAL CARE AND FACILITIES ACT (PACFA)**

A Colorado Department of Agriculture licensing and regulatory program requiring pet animal facilities operating above threshold numbers (15+ cats and dogs) to obtain a state license. PACFA staff inspect licensed facilities and must report suspected cruelty to law enforcement or BAP. PACFA cannot enforce local ordinances or handle criminal cases independently.

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### **PARTIAL REMOVAL / PARTIAL THRESHOLD**

A situation where only some animals on a property meet the legal threshold for removal. Requires careful, documented assessment of each animal and a clear follow-up plan for those left in place. Partial removal demands more intensive monitoring than complete removal.

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### **PROBABLE CAUSE**

The legal standard required before seizing animals. Probable cause exists when observable facts and documented evidence would lead a reasonable person to believe animals are suffering from cruelty or neglect, or that violations of animal welfare laws are occurring. Required before any animal removal.

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### **PROSECUTOR**

An attorney representing the government in criminal animal cruelty cases. Early coordination with prosecutors is critical for evidence collection, cost of care hearing timelines, and case strategy. Prosecutors have an ethical obligation to avoid prejudicial public statements.

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### **REGIONAL PARTNER NETWORK**

A coalition of animal welfare organizations, law enforcement agencies, veterinarians, and other stakeholders in a geographic area that can be activated to share resources and support during large-scale impound cases. Examples in Colorado include MDAWA, AWAC, COFrOps, WeCARE, and NOCORAWC.

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### **SEARCH WARRANT**

A court-issued order authorizing law enforcement to enter a property and seize evidence or animals. Required when an owner does not consent to entry. If animals are seized pursuant to a search warrant, this is considered prima facie evidence of sufficient cause for impoundment at a cost of care hearing.

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### **SHELTER IN PLACE**

An alternative to removal where animals remain on the owner's property under a corrective action plan, compliance requirements, and monitoring. Appropriate when animals are not in immediate danger, conditions can be improved on-site, and the owner is cooperative.

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### **SPECIES-APPROPRIATE STANDARDS**

Care requirements specific to the biological needs, behavioral norms, and environmental tolerances of each animal species. Standards vary significantly between companion animals, equines, livestock, and small or exotic animals, and must be applied consistently when making removal decisions.

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### **URGENCY LEVEL**

A classification system (Levels 1–4) used to triage animal welfare cases by severity and required response time. Level 1 (Emergency) requires response within 2–4 hours; Level 4 (Routine) allows 7–14 days for a site visit. Classification drives removal timelines and resource deployment.

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### **VOLUNTARY SURRENDER**

An agreement in which an owner voluntarily relinquishes animals to an agency without the trauma and expense of impoundment proceedings. Often produces better outcomes for animals and owners, and may be explored before or during an investigation as an alternative to forced removal.

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# APPENDIX



# APPENDIX LINKS

**APPENDIX 1**

Law Enforcement and Shelters by County

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**APPENDIX 1.a**

Colorado Animal Response Resources

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**APPENDIX 2**

Incident Command System Training Recommendations

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**APPENDIX 2. a**

Incident Action Plan Form

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**APPENDIX 2. b**

Incident Command Management Overview

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**APPENDIX 3**

Completing an Incident Action Plan (IAP)

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**APPENDIX 4**

How to Complete the ICS 201 Form

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**APPENDIX 5**

Animal ID Numbering System

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**APPENDIX 6**

Sample Owner Surrender Form

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**APPENDIX 6.a**

Owner Surrender Conversation Guide

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**APPENDIX 7**

Animal Evidence Tracking Form

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**APPENDIX 8**

Medical Evaluation of Abuse/Neglect Case

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**APPENDIX 9**

4 Views Skin & Hair Coat for Dogs

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**APPENDIX 10**

Equine Exam Form

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**APPENDIX 11**

Body Score Conditioning Resources - Dogs, Cats, Equines

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**APPENDIX 11. a**

Body Score Conditioning Resources - Livestock

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**APPENDIX 12**

Chain of Custody Form

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**APPENDIX 13**

Cost of Care Form



# APPENDIX LINKS

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**APPENDIX 14**

MOU Template - Cost of Care Between Law Enforcement and Sheltering Agency

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**APPENDIX 15**

Resource Assessment Tool - Does The Investigating Agency Have Resources To Initiate A Case?

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**APPENDIX 16**

Initial Case Assessment

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**APPENDIX 17**

Legal and Cost of Care Partner Support - When and How to Seek Legal Support

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**APPENDIX 18**

Shelter Transport Help Request Form

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**APPENDIX 19**

MOU Template - BAP and Holding Facility

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**APPENDIX 20**

MOA Template - Multi-Agency Coordination in Large-Scale Impound Cases

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**APPENDIX 21**

Protocols For Information Sharing - What Can Be Shared And What Is Confidential

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**APPENDIX 22**

Closed investigation Checklist - Use this before releasing/disclosing any information related to a closed investigation

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**APPENDIX 23**

Public FAQ Document: Quickly create FAQ documents for large-scale impounds.

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**APPENDIX 24**

Common Messaging Themes & Sample Responses

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**25**

MOU Template - Fundraising Agreement

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**APPENDIX 26**

Case Messaging Samples & Templates

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**APPENDIX 27**

Decision-Making Guidelines for Managing Animals from Large-Scale Operations

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**28**

A Guide for Transport and Shelter Care

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